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DOCTRINE OF BASIC STRUCTURE: A CRITIQUE¹

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INTRODUCTION

The Constitution makers prescribed the procedure to amend the provision(s) of the Constitution by making it neither too rigid nor too flexible with an objective that the Parliament may amend it in order to meet the demands of the 'PEOPLE OF INDIA'. This power of amendment in the hands of Parliament raises a significant question that, are the amending powers of the Parliament absolute as there is no specific mention of such limitation in the text of the Constitution. If the answer to this question is in affirmative with a reason that the Constitution makers did not intend for such limitation, otherwise, they would have provided for such limitation in the Constitution itself, then this will give rise to related questions. First, are there not any chances that this power of amendment in the name of constituent power² may

¹ This Paper with the title '*The Doctrine of Basic Structure of the Indian Constitution: A Critique*' was uploaded as a Working Paper on Social Sciences Research Network on 23 September 2015 and last revised on 5 July 2019 for comments <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2661127>. The Working Paper has been thoroughly revised and updated for the purposes of this publication.

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² *Minerva Mills Ltd. v. Union of India*, AIR 1980 SC 1789; The issue as to the constituent power was resolved by the Supreme Court where the Court observed that "Parliament cannot, under Article 368, expand its amending power so as to acquire for itself the right to repeal or abrogate the Constitution or to destroy its basic and essential features. The donee of a limited power cannot by the exercise of that power convert the limited power into an unlimited one"; See, para 22 of the judgment. Bhagwati, J. in his separate opinion clearly expressed that we did not express any final opinion on the constitutional validity of the amendments made in the Ninth Schedule on or after 24 April 1973 but we made it clear that these amendments would be open to challenge on the ground that they or any one or more of them damage the basic or essential features of the Constitution or its basic structure, and are therefore, outside the constituent power of Parliament; See, para 82 of the judgment; For the question dealing with constitutional validity of the amendments

be abused and the Parliament at the first instance would amend the Article 368 itself which gives it such power of amendment? Second, are there not any chances that this constituent power may be abused by the Parliament to the extent of making the Constitution sit amended rather stand amended?³ If the answer to these questions are in negative with a reason that, if the sovereign people through their representatives cannot bring about their '*desired change*', who will?⁴ Then, this reason is further subject to a question that, of what use that *desired change* will be to the '*PEOPLE OF INDIA*' if it is at the cost of the Constitution itself. To all these related questions, the doctrine is

made in the Ninth Schedule on or after 24 April 1973, see, I. R. Coelho v. State of Tamil Nadu, AIR 2007 SC 861 (discussed in Part III of the paper; See, infra n. 162).

³ During the time of national emergency, various amendments were introduced to the Constitution through the Constitution (Forty-second Amendment) Act, 1976.

⁴ SUBHASH C. KASHYAP, '*OUR CONSTITUTION*', 340 (New Delhi: National Book Trust, 2011).

reply. The general claim that the doctrine is an ‘invention’⁵ of the Supreme Court of India is unfounded as worst and misinformed at

⁵ PRAN CHOPRA, ‘THE SUPREME COURT VERSUS THE CONSTITUTION: A CHALLENGE TO FEDERALISM’ (Sage Publications Pvt. Ltd., 2005); Kung-Chung Liu and Uday S. Racherla, ‘Innovation, Economic Development, and Intellectual Property in India and China: Comparing Six Economic Sectors (ARCIALA Series on Intellectual Assets and Law in Asia), 52 (Springer, 2019); Helmut Goerlich, ‘Concept of Special Protection for Certain Elements and Principles of the Constitution against Amendments and Article 79 (3), Basic Law of Germany’, 1 NUJS L. Rev. (2008) accessed on 30 march, 2020 <<http://www.commonlii.org/in/journals/NUJSLawRw/2008/27.pdf>>; Alexander Fischer, ‘Which Road to Social Revolution? Liberalization and Constitutional Reform in India’ Heidelberg Papers in South Asian and Comparative Politics, Working Paper No. 34 (2007), accessed on 2 January 2020 <https://archiv.ub.uni-heidelberg.de/volltextserver/7950/1/ALEX_HPSACP_20_DEC_07.pdf>; Fali S. Nariman, ‘The Silence in our Constitutional Law’ (2006) [He cited from Dr. Basu’s Commentary on the Constitution of India] accessed on 14 October 2019 <https://www.ebc-india.com/lawyer/articles/2006_2_15.htm>; K. Ashok Vardhan Shetty, ‘Can the Ten Percent Quota for Economically Weaker Sections Survive Judicial Scrutiny?’, The Hindu Centre for Politics and Public Policy, Policy Watch No. 9 (2019) accessed on 30 March 2020 <<https://www.thehinducentre.com/publications/policy-watch/article26455910.ece/BINARY/Policy%20Watch%20No.9.pdf>>; N. Sathish Gowda, ‘Constitutional Basis for Basic Structure Doctrine in India: Effects and Applicability’ KLE Law Journal (2017) accessed on 30 March 2020 <<http://docs.manupatra.in/newslines/articles/Upload/4715CF34-CCD9-4E2E-8072-71C0795456BB.pdf>>; V. R. Jayadevan, ‘Basic Structure Doctrine and its Widening Horizons’, 327 CULR (2003) accessed on 30 March 2020 <<http://dspace.cusat.ac.in/jspui/bitstream/123456789/11059/1/Basic%20Structure%20Doctrine%20and%20its%20Widening%20Horizons%20%282%29.PDF>>; Anuranjan Sethi, ‘Basic Structure Doctrine: Some Reflections’ (2005) accessed on 12 July 2019 <https://papers.ssrn.com/sol3/papers.cfm?abstract_id=835165>; Sanjay Satyanarayan Bang, ‘Judicial Review of Legislative Action: a tool to balance the supremacy of the Constitution’, accessed on 29 March 2020 <http://www.internationalseminar.org/XIV_AIS/TS%202/12.%20Sanjay%20Satyanarayan%20Bang.pdf>; ‘The Doctrine of Basic Structure in Pre and Post Keshavananda’s Case’ accessed on 30 March 2020 <<https://shodhganga.inflibnet.ac.in/bitstream/10603/39853/9/chapter%205.pdf>>; ‘Indian Constitution at Work’ Class XI, Political Science, 214-215 (NCERT, Chapter 9: Constitution as a Living Document) accessed 14 March 2020 <http://ncertbooks.prashanthellina.com/class_11.PoliticalScience.IndiaConstitutionatWork/chap9.pdf>; Even the doctrine of prospective overruling in context to Golaknath cannot be called as an invention of the Court. See, Bhavya Bhandari,

best. Rather, it is better to call the doctrine as an ‘announcement’ of the Supreme Court in *Keshavananda Bharati Sripadagalvaru v. State of Kerala*⁶ on 24 April 1973. The basic structure doctrine has its own history and development in India which has been covered in Parts II and III of the paper.

The doctrine can be traced back to *State of Rhode Island v. A. Mitchel Palmer*⁷ in which the Court observed that “the decision of the Congress on this question as to whether a particular amendment should be ratified by the State Legislatures or by the State Conventions is final. The Constitution makers must have proceeded on the basis that the Congress is likely to require the amendment of basic elements or fundamental features of the Constitution to be ratified by State conventions.” In this observation the term ‘basic elements or fundamental features’ purport to have been used to connote the set of provisions, which may require ratification by states. Further, the judgment of the Pakistan Supreme Court in *Fazlul Quader Chowdhry v. Mohd. Abdul Haque*;⁸ have also talked about the basic structure doctrine. In this case, the Court observed that “franchise and form of government are fundamental features of a Constitution and the power conferred upon the President by the Constitution of Pakistan to remove difficulties does not extend to making an alteration in a fundamental feature of the Constitution.” And while writing his opinion in *Sajjan Singh*,⁹ Mudholkar, J. cited this observation on the issue of alteration in the fundamental feature of the Constitution.¹⁰ And, in February 1965, two years before the *Golaknath*¹¹ judgment, a German Professor named Dietrich Conrad (formerly head of the Department of Law, South Asia Institute of the University of

‘Basic Structure in the Constitution of India’ 901 IJTSRD, 2018, Vol. II, Issue 5 accessed on 30 March 2020 <<https://www.ijtsrd.com/papers/ijtsrd16994.pdf>>

⁶ AIR 1973 SC 1461.

⁷ Judgment of the US Supreme Court of the year 1919.

⁸ 1963 P.L.D. 486.

⁹ *Sajjan Singh v. State of Rajasthan*, [1965] 1 SCR 933.

¹⁰ *Id.* at para 3.

¹¹ *I. C. Golakh Nath v. State of Punjab*, [1967] 2 SCR 762.

Heidelberg) visited Faculty of Law, Banaras Hindu University where he delivered a lecture on “*Implied Limitation of the Amending Power*”.¹² He elucidated that “any amending body organized within the statutory scheme, howsoever verbally unlimited its power, cannot by its very structure change the fundamental pillars of supporting its constitutional authority.” M. K. Nambyar inspired by Professor Conrad brought the issue of “*necessary implied restraint*” to the amendment of the Constitution in *I. C. Golakh Nath* but the Judiciary hesitated to pronounce this notion. Further, in *Keshavananda Bharati*,¹³ Nani Ardeshir Palkhivala brought this issue of *necessary implied restraint* and finally, the Supreme Court announced the doctrine on 24 April 1973.

To say that Professor Conrad by his visit made the [Re] Public of India aware with the necessary implied restraint on the amending power would not be wrong. This paper seeks to trace the historical development of the doctrine¹⁴ through academic writings and case law; and makes an attempt to answer the three related questions: first, whether the amending power of the Parliament is absolute; second, whether there is a clarity as to the basic constituents of the basic

¹² A. G. Noorani, ‘Behind the ‘Basic Structure’ Doctrine— On India’s Debt to a German Jurist, Professor Dietrich Conrad’, *Frontline*, Volume 18, Issue 9, 28 April– 11 May 2001 accessed 12 November 2014 <<https://frontline.thehindu.com/other/article30159673.ece>>

¹³ *Keshavananda Bharati Sripadagalvaru v. State of Kerala*, AIR 1973 SC 1461 (popularly known as the Fundamental Rights Case).

¹⁴ If we make an attempt to define what the basic structure doctrine is actually so for that it is necessary to first understand the meanings of the words: ‘doctrine’, ‘basic’ and ‘structure’ [It is not worthy to discuss the meanings of these words with the *meanings of meaning approach*—rather, semantic understanding will convey the basic Idea]. The expression ‘basic’ refers to forming the part of something that is most necessary and from which other things develop; ‘structure’ refers to the way that the parts of something are put together or organized; whereas, ‘doctrine’ refers to a set of beliefs. The doctrine is nothing without the *basic features* which forms the part and parcel of it. So, the doctrine of basic structure means and implies that there are some basic inalienable features of the Constitution [which cannot be amended by Parliament in exercise of its constituent power]. In other words, the doctrine is the sum total of the basic features of the Constitution.

structure of the Constitution; and third, whether the basic constituents are static or dynamic.

JUDICIAL JOURNEY OF BASIC STRUCTURE DOCTRINE

SHANKARI PRASAD¹⁵

Soon after the PEOPLE OF INDIA adopted, enacted and gave to themselves the Constitution, the journey of unconstitutional-constitutional amendments started in the country. The problem of validity of the constitutional amendments arose on the issue of right to property.¹⁶ The originally enacted Constitution included provisions related to property under Articles 19(1)(f)¹⁷ and 31. In order to create social and equitable order, State Governments introduced land reform legislations through Zamindari Abolition Act. These legislations were challenged in High Courts of Patna, Allahabad and Nagpur. The High Courts of Allahabad and Nagpur held the Act constitutional but the High Court of Patna in *Kameshwar Prasad Singh v. State of Bihar*¹⁸ held the Bihar Land Reforms Act, 1950 unconstitutional. Different interpretations of the High Court led to several controversies and in the midst of this, the provisional Parliament introduced the Constitution (First Amendment) Act, 1951¹⁹ through which it limited

¹⁵ *Shankari Prasad v. Union of India*, AIR 1951 SC 458. This was a Constitution Bench judgment of the Supreme Court of India delivered on 5 October 1951. The bench consisted of Hiralal J. Kania, C.J., M. Patanjali Sastri, B. K. Mukherjea, Sudhi Ranjan Das, and N. Chandrasekhara Aiyar, JJ.

¹⁶ Several State Legislatures carried out certain agrarian reforms in Bihar, Uttar Pradesh and Madhya Pradesh by enacting legislation which may compendiously be referred to as Zamindari Abolition Acts.

¹⁷ Right to acquire, hold and dispose of property was omitted by the Constitution (Forty-fourth Amendment) Act, 1978.

¹⁸ *Kameshwar Singh v. State* AIR 1951 Pat. 91; The unconstitutionality of the Bihar Land Reforms Act, 1950 was related to the law being the subject to Article 13(2); Article 13 (2) reads as: "The State shall not make any law which takes away or abridges the rights conferred by this Part and any law made in contravention of this clause shall, to the extent of the contravention, be void." Part III in the text refers to the Part III of the Constitution of India.

¹⁹ To read the Statement of Objects and Reasons of the Constitution (*First Amendment*) Bill, 1951 and text of the Constitution (*First Amendment*) Act, 1951,

the fundamental right to property and introduced new Articles in the Constitution by the saving clause—Articles 31A²⁰ and 31B.²¹ It was broadly declared in Article 31-A that any law providing for compulsory acquisition of property aimed at development of the State will not be unconstitutional merely because it is in conflict with Articles 14 and 19. Whereas, Article 31-B introduced a new Schedule in the Constitution, the Ninth Schedule, which laid down that any law included in Ninth Schedule would be immune from challenges in any court of law.

The constitutional validity of the Constitution (First Amendment) Act, 1951 was challenged before the Supreme Court in *Shankari Prasad*. The amendments were challenged on the ground that the word ‘law’ under article 13(2) also includes the ‘law of the amendment of the Constitution’ and so Articles 31-A and 31-B are invalid because they abridge the fundamental rights. To the issue that the definition of the word contained under Article 13(3)(a)²² did not expressly refer to the ‘constitutional amendments’, the Court held that although amendment is superior to an ordinary legislation but it will not be hit by article 13(2). On this point the Court made the following observations:

Although “law” must ordinarily include constitutional law, there is a clear demarcation between ordinary law, which is made in exercise of legislative power and constitutional law, which is made in exercise of constituent power. . . No doubt our constitution-makers, following the American model, have incorporated certain fundamental rights in Part III and made them immune from interference by laws made by the State.

See, accessed 12 January 2020 <<http://legislative.gov.in/constitution-first-amendment-act-1951>>.

²⁰ The marginal head of Article 31A of the Constitution reads as: *Saving of laws providing for acquisition of estates, etc.*

²¹ The marginal head of Article 31B of the Constitution reads as: *Validation of certain Acts and Regulations.*

²² Article 13(3)(a) reads as: “law” includes any ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law.

Had it been intended to save the fundamental right from the operation of that provision, it would have been perfectly easy to make that intention clear by adding a proviso to that effect. . . . Harmonious construction requires that one should be read as controlled and qualified by the other . . . in the context of article 13 “law” must be taken to mean rules or regulations made in exercise of ordinary legislative power and not amendments to the Constitution made in exercise of constituent power, with the result that article 13(2) does amendments made under article 368.²³

As to the validity of Articles 31A and 31B in relation to fundamental rights, the Court observed:

It will be seen that these articles do not either in terms or in effect seek to make any change in article 226 or in articles 132 and 136. Article 31A aims at saving laws providing for the compulsory acquisition by the State of a certain kind of property from the operation of article 13 read with other relevant articles in Part III, while article 31B purports to validate certain specified Acts and Regulations already passed, which, but for such a provision, would be liable to be impugned under article 13. It is not correct to say that the powers of the High Court under article 226 to issue writs “*for the enforcement of any of the rights conferred by Part III*” or of this Court under articles 132 and 136 to entertain appeals from orders issuing or refusing such writs are in any way affected. They remain just the same as they were before: only a certain class of case has been excluded from the purview of Part II/and the courts could no longer interfere, not because their powers were curtailed in any manner or to any extent, but because there would be no occasion hereafter for the exercise of their power in such cases.²⁴

²³ AIR 1951 SC 458, para at 18.

²⁴ *Id.* at para 20.

As to the issue that it was beyond the power of Parliament to enact the new articles, the Court made the following observations:

Articles 31A and 31B really seek to save a certain class of laws and certain specified laws already passed from the combined operation of article 13 read with other relevant 109 articles of Part III. The new articles being thus essentially amendments of the Constitution, Parliament alone had the power of enacting them. That the laws thus saved relate to matters covered by List II does not in any way affect the position. It was said that Parliament could not validate a law which it had no power to enact. The proposition holds good where the validity of the impugned provision turns on whether the subject-matter falls within or without the jurisdiction of the legislature which passed it. But to make a law which contravenes the constitution constitutionally valid is a matter of constitutional amendment, and as such it falls within the exclusive power of Parliament. The question whether the latter part of article 31B is too widely expressed was not argued before us and we express no opinion upon it.²⁵

The Court using the literal interpretation upheld the validity of the Constitution (First Amendment) Act, 1951 and held that Article 368 empowers the Parliament to amend the Constitution without any exception. Court disagreed with the view that FRs is inviolable. This decision was lamented by Nehru as *'somehow, we have found that the magnificent Constitution that we have framed was kidnapped and purloined by the lawyers.'*

²⁵ *Id.* at para 21.

SAJJAN SINGH²⁶

After *Shankari Prasad*, the Constitution (Fourth Amendment) Act, 1955²⁷ was passed which amended some Articles in Part III but its validity was never challenged. The Constitution (Seventeenth Amendment) Act, 1964²⁸ introduced a major change and put a number of laws in the Ninth Schedule in order to keep them out of judicial scrutiny, and was challenged before the Court. The majority of the judges in *Sajjan Singh* on the same reasons as laid down in *Shankari Prasad* held that the law of amendment is superior law and is not subject to Article 13(2). Court further held that the *Shankari Prasad* case was rightly decided and affirmed that the Parliament under Article 368 can amend any of the provision of the Constitution including the fundamental rights and made a suggestion to the Parliament that fundamental rights should be included in the *proviso* of the Article 368.²⁹

²⁶ *Sajjan Singh v. State of Rajasthan*, [1965] 1 SCR 933. This was a Constitution Bench judgment of the Supreme Court of India delivered on 30 October 1964. The bench consisted of P. B. Gajendragadkar, C.J., K. N. Wanchoo, M. Hidayatullah, Raghubar Dayal, and J. R. Mudholkar, JJ. M. Hidayatullah and J. R. Mudholkar, JJ. wrote separate opinions agreeing with the opinion of P. B. Gajendragadkar, C.J. Whereas, M. Hidayatullah, J. clearly wrote in his opinion that “For these reasons though I agree with the order proposed, I would not like to be understood to have expressed a final opinion on the aspect of the case outlined above”, See, para 52 of the judgment.

²⁷ To read the Statement of Objects and Reasons of the Constitution (*Fourth Amendment*) Bill, 1954 and text of the Constitution (*Fourth Amendment*) Act, 1955, See, accessed 12 January 2020 <<http://legislative.gov.in/constitution-fourth-amendment-act-1955>>.

²⁸ To read the Statement of Objects and Reasons of Bill, and text of the Constitution (*Seventeenth Amendment*) Act, 1964, see, accessed 12 January 2020 <<http://legislative.gov.in/constitution-seventeenth-amendment-act-1964>>; The amendment inserted 44 Acts in the Schedule. It was noted that Articles 31A and 31B were added to the Constitution realizing the State Legislative measures adopted by certain States giving effect to the policy of agrarian reforms have to face serious challenge in the in the Courts of law on the ground that they contravene the Fundamental Rights guaranteed under the Constitution.

²⁹ In the originally enacted Constitution, the term “power” was not in the marginal head of Article 368. The texts of the original Article are reproduced as under: *Procedure for amendment of the Constitution*.— An amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of

P. B. Gajendragadkar, C.J. while holding the impugned Act constitutionally valid, made the following observations:

Parliament, and when the Bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting, it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution shall stand amended in accordance with the terms of the Bill:

Provided that if such amendment seeks to make any change in—

Article 54, Article 55, Article 73, Article 162 or Article 241, or

Chapter IV of Part V, Chapter V of Part VI, or Chapter I of Part XI, or

any of the Lists in the Seventh Schedule, or

the representation of States in Parliament, or

the provisions of this article,

the amendment shall also require to be ratified by the Legislatures of not less than one-half of the States specified in Parts A and B of the First Schedule by resolutions to that effect passed by those Legislatures before the Bill making provision for such amendment is presented to the President for assent.

Text of Article 368 after the amendment: "Power of the Parliament to amend the Constitution and procedure therefore —

(1) Notwithstanding anything in this Constitution, Parliament may in exercise of its constituent power amend by way of addition, variation or repeal any provision of this Constitution in accordance with the procedure laid down in this article.

(2) An amendment of this Constitution may be initiated only by the introduction of a Bill for the purpose in either House of Parliament, and when the Bill is passed in each House by a majority of the total membership of that House and by a majority of not less than two-thirds of the members of that House present and voting, it shall be presented to the President for his assent and upon such assent being given to the Bill, the Constitution *shall stand amended* in accordance with the terms of the Bill.

Provided that if such amendment seeks to make any change in -

article 54, article 55, article 73, article 162 or article 241, or

Chapter IV of Part V, Chapter V of Part VI, or Chapter I of Part XI, or

any of the Lists in the Seventh Schedule, or

the representation of States in Parliament, or

the provisions of this article,

the amendment shall also require to be ratified by the Legislatures of not less than one-half of the States by resolution to that effect passed by those Legislatures before the Bill making provision for such amendment is presented to the President for assent.

(3) Nothing in Article 13 shall apply to any amendment made under this article.

(4) No amendment of this Constitution (including the provisions of Part III) made or purporting to have been made under this article [whether before or after the commencement of section 55 of the Constitution (Forty-Second Amendment) Act, 1976] shall be called in question in any court on any ground.

(5) For the removal of doubts, it is hereby declared that there shall be no limitation whatever on the constituent power of Parliament to amend by way of addition, variation or repeal the provisions of this Constitution under this article.

[T]he two parts of Article 368 must on a reasonable construction be harmonized with each other in the sense that the scope and effect of either of them should not be allowed to be unduly reduced or enlarged. . . . When the Constitution-makers did not include Part III under the proviso, it would be reasonable to assume that they took the view that the amendment of the provisions contained in Part III was a matter which should be dealt with by Parliament under the substantive provisions of Art. 368 and not under the proviso. . . . It is true that as a result of the amendment of the fundamental rights, the area over which the powers prescribed by Art. 226 would operate may be reduced, but apparently, the Constitution-makers took the view that the diminution in the area over which the High Courts' powers under Art. 226 operate, would not necessarily take the case under the proviso.³⁰

[I]f the substantive part of Art. 368 is very liberally and generously construed and it is held that even substantial modification of the fundamental rights which may make a very serious and substantial inroad on the powers of the High Court's under Art. 226 can be made without invoking the proviso, it may deprive clause (b) of the proviso of its substance³¹. . . . In dealing with constitutional questions of this character, courts generally adopt a test which is described as the *pith and substance test*.³²

As to the purpose and object of impugned Act, he observed that "Parliament, in enacting the impugned Act, was not making any provisions of land legislation. It was merely validating land legislations already passed by the State Legislatures in that behalf."³³

³⁰ [1965] 1 SCR 933, para 9.

³¹ *Id.*, at 10.

³² *Id.*, at 11.

³³ *Id.*, at 17.

As to the constituent power and meaning of the word “amend”, he observed:

The constituent power conferred by Art. 368 on the Parliament can also be exercised both prospectively and retrospectively.³⁴ . . . It is true that the dictionary meaning of the word “amend” is to correct a fault or reform; but in the context, reliance on the dictionary meaning of the word is singularly inappropriate, because what Art. 368 authorizes to be done is the amendment of the provisions of the Constitution. . . . The power to amend in the context is a very wide power and it cannot be controlled by the literal dictionary meaning of the word “amend”.³⁵

As to reconsidering the decision in *Shankari Prasad*, he observed as under:

The problem of construing constitutional provisions cannot be reasonably solved merely by adopting a literal construction of the words used in the relevant provisions. The Constitution is an organic document and it is intended to serve as a guide to the solution of changing problems which the Court may have to face from time to time.³⁶ . . . [I]f the arguments urged by the petitioners were to prevail, it would lead to the inevitable consequence that the amendments made in the Constitution both in 1951 and 1955 would be rendered invalid and a large number of decisions dealing with the validity of the Acts included in the Ninth Schedule which have been pronounced by different High Courts ever since the decision of this Court in *Sankari Prasad's case* was declared, would also be exposed to serious jeopardy. . . . [H]owever, we have deliberately chosen to deal with the merits of the contentions before referring to the decision itself. In our

³⁴ *Id.*, at 18. It was further observed that on several occasions, legislatures think it necessary to validate laws which have been declared to be invalid by Courts of competent jurisdiction and in so doing, they have necessarily to provide for the intended validation to take effect notwithstanding any judgment, decree or order passed by a court of competent jurisdiction to the contrary.

³⁵ *Id.*, at 20.

³⁶ *Id.*, at 23.

opinion, the plea made by the petitioners for re-considering *Sankari Prasad's case* in wholly unjustified and must be rejected.³⁷

[T]he expression "*amendment of the Constitution*" plainly and unambiguously means amendment of all the provisions of the Constitution. It would...be unreasonable to suggest that Art. 368 provide is only the mechanics of the procedure to be followed in amending the Constitution without indicating which provisions of the Constitution can be amended and which cannot.³⁸

It is true that Art. 13(2) refers to any law in general, and literally construed, the word "law" may take in a law made in exercise of the constituent power conferred on Parliament; but having regard to the fact that a specific, unqualified and unambiguous power to amend the Constitution is conferred on Parliament, it would be unreasonable to hold that the word "law" in Art. 13(2) takes in Constitution Amendment Acts passed under Art. 368. If the Constitution-makers had intended that any future amendment of the provisions in regard to fundamental rights should be subject to Art. 13(2), they would have taken the precaution of making a clear provision in that behalf . . .

There is no doubt that if word "law" used in Art. 13(2) includes a law in relation to the amendment of the Constitution, fundamental rights can never be abridged or taken away, because as soon as it is shown that the effect of the amendment is to take away or abridge fundamental rights, that portion of the law would be void under Art. 13(2). We have no doubt that such a position could not have been intended by the Constitution-makers when they included Art. 368 in the Constitution.³⁹

³⁷ *Id.*, at 24.

³⁸ *Id.*, at 29.

³⁹ *Id.*, at 30.

Whether or not Parliament has the power to amend the Constitution must depend solely upon the question as to whether the said power is included in Art. 368.⁴⁰

Incidentally . . . the Constitution-makers took the precaution of making this specific provision to exclude the applicability of Art. 368 to certain amendments, it would be reasonable to assume that they would have made a specific provision if they had intended that the fundamental rights guaranteed by Part III should be completely outside the scope of Art. 368⁴¹. . . It must not be forgotten that the fundamental rights guaranteed by Art. 19, for instance, are not absolute; the scheme of this article itself indicates that the fundamental rights guaranteed by sub-clauses (a) to (g) of clause (1), can be validly regulated in the light of the provisions contained in clauses (2) to (6) of Art. 19. . . That is why we think that even on principle, it would not be reasonable to proceed on the basis that the fundamental rights enshrined in Part III were intended to be finally and immutably settled and determined once for all and were beyond the reach of any future amendment.⁴²

*It is clear that Art. 368 itself can be amended by Parliament, though clause (e) of the proviso requires that before amending Art. 368, the safeguards prescribed by the proviso must be satisfied. In other words, even if the powers to amend the fundamental rights were not included in Art. 368, Parliament can, by a suitable amendment of Art. 368, take those powers.*⁴³

(emphasis added)

One of the arguments in this case was relating to the scope of judicial review which was reduced to a great extent, so the amendment should be struck down. The Court rejected this argument and held by

⁴⁰ *Id.*, at 31.

⁴¹ *Id.*, at 32.

⁴² *Id.*, at 33.

⁴³ *Id.*, at 35.

majority that the “*pith and substance*”⁴⁴ of the amendment was to amend the fundamental rights and not to restrict the scope of Article 226.⁴⁵ On this point, Justice Hidayatullah made a separate observation:

I would require stronger reasons than those given in *Shankari Prasad* to make me accept the view that Fundamental Rights were not really fundamental but were intended to be within the powers of amendment in common with the other parts of the Constitution and without concurrence of the states.⁴⁶

Hidayatullah, J. expressed his concern and wrote his separate opinion which is as follows:

It is true that there is no complete definition of the word “law” in the article but it is significant that the definition does not seek to exclude constitutional amendments which it would have been easy to indicate in the definition by adding “*but shall not include an amendment of the Constitution*”. The meaning is also sought to be enlarged not curtailed. The meaning of Art. 13 thus depends on the sense in which the word “law” in Art. 13(2) is to be understood. If an amendment can be said to fall within the term “law”, the Fundamental Rights become “eternal and inviolate” to borrow the language of the Japanese Constitution. Article 13 is then on par with Art. 5 of the American Federal Constitution is its immutable prohibition as long as it stands. But the restricted meaning given to the word “law” prevents this to be held. There is *a priori* reasoning without consideration of the text of the article in Part III. The Article use the language of permanency.⁴⁷

No doubt Art. 19 by clauses numbered 2 to 6 allows a curtailment of rights in the public interest. This shows that Part III is not static. . .

⁴⁴ See, paras 10-12, 16-17, 19 of the judgment.

⁴⁵ Article 226 of the Constitution of India deals with the *Power of High Courts to issue certain writs*.

⁴⁶ *Sajjan Singh v. State of Rajasthan*, [1965] 1 SCR 933, para 49.

⁴⁷ *Id.*, at 41.

Even the agrarian reforms could have been partly carried out without Article 31-A and 31-B but they would have cost more to the public exchequer. The rights of society are made paramount and they are placed above those of the individual. This is as it should be. But restricting the Fundamental Rights by resort to clauses 2 to 6 of Art. 19 is one thing and *removing the rights from the Constitution or debilitating them by an amendment is quite another*. This is the implication of *Sankari Prasad's case*. It is true that such things would never be, but one is concerned to know if such a doing would be possible.⁴⁸

It may be said that the words of Art. 368 are quite explicit. Art. 368 does not give power to amend "any provision" of the Constitution. At least the article does not say so. Analyzed by the accepted canons of interpretation it is found to lay down the manner of the amendment of "this Constitution" but by "this Constitution" it does not mean each individual article wherever found and whatever its language and spirit. . . The proviso merely puts outside the exclusive Power of Parliament to amend those provisions *on which our federal structure rests*. It makes it incumbent that a majority of the States should also agree. The proviso also preserves the structure of the higher judiciary so vital to a written Constitution and to a Democracy such as ours. But the article nowhere says that the preamble and every single article of the Constitution can be amended by two-thirds majority despite any permanency in the language and despite any historical fact or sentiment.⁴⁹

The Constitution gives so many assurances in Part III that it would be difficult to think that they were the plaything of a special majority. To hold this would mean *prima facie* that the most solemn parts of our Constitution stand on the same footing as any other part and even on a less firm ground than one on which the articles mentioned in the

⁴⁸ *Id.*, at 49.

⁴⁹ *Id.*, at 50.

proviso stand. As at present advised, I can only say that the power to make amendment ought not ordinarily to be a means of escape from absolute Constitutional restrictions.⁵⁰

J. R. Mudholkar, *J.* made the following observations:

The language of Art. 368 is plain enough to show that the action of Parliament in amending the Constitution is a legislative act like one in exercise of its normal legislative power . . . The result of a legislative action of a legislature cannot be other than 'law' and, therefore, it seems to me that the fact that the legislation deals with the amendment of a provision of the Constitution would not make its result any the less a 'law'.⁵¹

It is true that the Constitution does not directly prohibit the amendment of Part III. But it would indeed be strange that rights which are considered to be fundamental and which include one which is guaranteed by the Constitution (vide Art. 32) should be more easily capable of being abridged or restricted than any of the matters referred to in the proviso to Art. 368 some of which are perhaps less vital than fundamental rights. . . The rights enumerated in Art. 19(1) can be subjected to reasonable restrictions under cls. (2) to (6) of Art. 19 and the other fundamental rights- or at least many of them- can perhaps be adapted to meet the needs of a changing society with the aid of the directive principles. . . These principles are also fundamental in the governance of the country and the provisions of Part III of the Constitution must be interpreted harmoniously with those principles. This is also an aspect of the matter which requires consideration.⁵²

[U]nder Art. 368 a procedure is prescribed for amending the Constitution. If upon a literal interpretation of this provision an amendment even of the *basic features of the Constitution* would be possible it will be a question for consideration as to how harmonize

⁵⁰ *Id.*, at 51.

⁵¹ *Id.*, at 56.

⁵² *Id.*, at 60.

the duty of allegiance to the Constitution with the power to make an amendment to it. Could the two be harmonized by excluding from the procedure for amendment, alteration of a basic feature of the Constitution? It would be of interest to mention that the Supreme Court of Pakistan has, in *Fazlul Quader Chowdhry v. Mohd. Abdul Haque*⁵³ held that franchise and form of government are fundamental features of a Constitution and the power conferred upon the President by the Constitution of Pakistan to remove difficulties does not extend to making an alteration in a fundamental feature of the Constitution.⁵⁴ . . . The Constitution indicates three modes of amendments and assuming that the provisions of Art. 368 confer power on Parliament to amend the constitution; it will still have to be considered whether as long as the preamble stands unamended, that power can be exercised with respect to any of the basic features of the Constitution.⁵⁵

Parliament can amend Part III of the Constitution and was; therefore, competent to enact therein Articles 31A and 31B as also to amend the definition of 'estate', the question still remains whether it could validate a State law dealing with land⁵⁶. . . . [I]f the effect of an amendment is to curtail substantially, though indirectly, the jurisdiction of High Courts under Art. 226 or of this Court under Art. 136 and recourse has not been had to the proviso to Art. 368 the question whether the amendment was a colourable exercise of power by Parliament will be relevant for consideration.⁵⁷

J. R. Mudholkar, *J.* observed that constitutional amendment be excluded from the definition of law under Article 13 and he also gave an argument that every constitution has certain basic principles which could not be changed. Mudholkar, *J.* concurred with the opinion of Gajendragadkar, *C.J.* and questioned that "it is also a matter for

⁵³ 1963 P.L.D. 486.

⁵⁴ *Sajjan Singh v. State of Rajasthan*, [1965] 1 SCR 933, para 63.

⁵⁵ *Id.*, at 65.

⁵⁶ *Id.*, at 69.

⁵⁷ *Id.*, at 70.

consideration whether making a change in the basic feature of the Constitution can be regarded merely as an amendment or would it be, in effect, rewriting a part of the Constitution; and if the latter, would it be within the purview of the Article 368?"⁵⁸

The strong reservations expressed by M. Hidayatullah and Mudholkar, *JJ.* prompted Subba Rao, *C.J.* to constitute a larger bench of eleven judges to reconsider the constitutional validity of the Constitution (First Amendment) Act, 1951, Constitution (Fourth Amendment) Act, 1955 and Constitution (Seventeenth Amendment) Act, 1964 in *I. C. Golakhnath v. State of Punjab*.⁵⁹

I. C. GOLAKHNATH⁶⁰

The Constitution (Seventeenth Amendment) Act, 1964 was challenged in *I. C. Golakhnath*. Subbarao, *C.J.*, delivered the majority judgement (for himself, Sikri, Shelat, Shah and Vaidyalingam, *JJ.*), whereas, *Hidayatullah, J.* delivered a concurring judgement. The two judgements reached the same conclusion although they took the opposite views as to the source of the amending power. Subbarao, *C.J.* held that Article 368 contained only procedure for amendment, the power to amend being located in the residuary power of legislation. As legislative power was subject to the provisions of this Constitution, Article 13(2) constituted a bar to an amendment abridging or taking away fundamental rights. The majority judgement overruled *Shankari Prasad*, and held that there was no distinction between legislative power and constituent power.⁶¹

K. Subba Rao, *C. J.* first started with the scope and place of fundamental rights in Constitution as declared in sonorous terms in the preamble, and made the following observations:

⁵⁸ *Id.*, at 62.

⁵⁹ [1967] 2 SCR 762.

⁶¹ H. M. SEERVAI, 'CONSTITUTIONAL LAW OF INDIA', p. 3111 (Universal Law Publishing Company Pvt. Ltd., New Delhi, 2014).

It (Preamble) contains in a nutshell, its ideals and its aspirations. The preamble is not a platitude but the mode of its realization is worked out in detail in the Constitution. . . In short, the scope of the power and the manner of its exercise are regulated by law. No authority created under the Constitution is supreme; the Constitution is supreme; and all the authorities function under the supreme law of the land. The rule of law under the Constitution has a glorious content. . . In the implementation of the Directive Principles, Parliament or the Legislature of a State makes laws in respect of matter or matters allotted to it. But the higher Judiciary tests their validity on certain objective criteria, namely, (i) whether the appropriate Legislature has the legislative competency to make the law; (ii) whether the said law infringes any of the fundamental rights; (iii) even if it infringes the freedoms under Art. 19, whether the infringement only amounts to “reasonable restriction” on such rights in “public interest”. By this process of scrutiny, the court maintains the validity of only such laws as keep a just balance between freedoms and social control. . .⁶²

[F]undamental rights are given a transcendental position under our Constitution and are kept beyond the reach of Parliament. At the same time Parts III and IV constituted an integrated scheme forming a self-contained code. The scheme is made so elastic that all the Directive Principles of State Policy can reasonably be enforced without taking away or abridging the fundamental rights. While recognizing the immutability of fundamental rights, subject to social control, the Constitution itself provides for the suspension or the modification of fundamental rights under specific circumstances... The *non-obstante clause* with which the last article 34 opens makes it clear that all the other provisions of the Constitution are subject to this provision.⁶³

⁶² [1967] 2 SCR 762, at 21.

⁶³ *Id.*, at 24. He referred to the Articles 33, 34, 35, 16(3), 32(3), 358, 19 and 359.

As to the question of *doctrine of necessary implication* and amendment of the Constitution is “law” within the meaning of Article 13(2), he observed:

The marginal note to Art. 368 describe that article as one prescribing the procedure for amendment. The article in terms only prescribes various procedural steps in the matter of amendment. . .The argument that the completion of the procedural steps culminates in the exercise of the power to amend may be subtle but does not carry conviction. If that was the intention of the provisions, nothing prevented the makers of the Constitution from stating that the Constitution may be amended in the manner suggested. . . The alternative contention that the said power shall be implied either from Art. 368 or from the nature of the articles sought to be amended cannot be accepted, for the simple reason that the *doctrine of necessary implication* cannot be invoked if there is an express provision or unless but for such implication the article will become otiose or nugatory. There is no necessity to imply any such power, as Parliament has the plenary power to make any law, including the law to amend the Constitution subject to the limitations laid down therein.⁶⁴

Uninfluenced by any foreign doctrines let us look at the provisions of our Constitution. Under Art.245, “subject to the provisions of the Constitution. Parliament may make laws for the whole or any part of the territory of India...” Article 246 ... Entry 97 ... Article 248 ... It is, therefore, clear that the residuary power of legislation is vested in Parliament. Subject to the argument based upon the alleged nature of the amending power as understood by jurists in other countries, which we shall consider at a later stage, it cannot be contended, and indeed, it was not contended, that the Constituent Assembly, if it were so minded, could not have conferred an express legislative power on Parliament to amend the Constitution by ordinary legislative process. . .. Can it be said reasonably that a law amending an article is

⁶⁴ *Id.*, at 35.

inconsistent with the article amended? If an article of the Constitution expressly says that it cannot be amended, a law cannot be made amending it, as the power of Parliament to make a law is subject to the said Article. It may well be that in a given case such a limitation may also necessarily be implied. The limitation in Art.245 is in respect of the power to make a law and not of the content of the law made within the scope of its power . . . Apart from the limited scope of Art. 392, which is intended only for the purpose of removing difficulties and for bringing about a smooth transition, an order made by the President cannot attract Art. 368, as the amendment contemplated by that provision can be initiated only by the introduction of a bill in the Parliament.⁶⁵

Further, there is internal evidence in the Constitution itself which indicates that amendment to the Constitution is a “law” within the meaning of Art. 245. Now, what is “law” under the Constitution? It is not denied that in its comprehensive sense it includes constitutional law and the law amending the Constitution is constitutional law. But Art. 13(2) for the purpose of that Article gives an inclusive definition. It does not exclude Constitutional law. It *prima facie* takes in constitutional law. Article 368 itself gives the necessary clue to the problem.⁶⁶

Referring⁶⁷ to *McCawley v. The King*⁶⁸ and *Bribery Commissioner v. Pedrick Ranasinghe*,⁶⁹ he observed that it will be seen from the said judgments that an amendment of the Constitution is made only by legislative process with ordinary majority or with special majority, as the case may be. Therefore, amendments either under Art. 368 or under other Articles are made only by Parliament by following the

⁶⁵ *Id.*, at 36.

⁶⁶ *Id.*, at 37.

⁶⁷ *See*, para 41.

⁶⁸ [1920] A.C. 691; *See*, para 40 of the *Golakhnath* judgment.

⁶⁹ [1964] 2 W.L.R. 1301; *See*, para 41 of the *Golakhnath* judgment.

legislative process adopted by it in making other law. In the premises, an amendment of the Constitution can be nothing but “law”.⁷⁰

As to the question of sovereign power of amendment that the said power is supreme to the legislative power, that it does not permit any implied limitations and that amendments made in exercise of that power involve political questions and that, therefore, they are outside judicial review, he hold that the wide proposition is sought to be supported on the basis of opinions of jurists and judicial decisions;⁷¹ and observed that there is nothing in the nature of the amending power which enables Parliament to override all the express

⁷⁰ [1967] 2 SCR 762, at 42.

⁷¹ *Id.*, at 46. *See also*, paras 46-49; He referred to the books: Lester Bernhardt Orfield *The Amending of the Federal Constitution* (1942) and discussed the relevant portion in para 47 of the judgment: Adverting to the Bill of Rights, the learned author remarks that they may be repealed just as any other amendment and that they are no more sacred from a legal standpoint than any other part of the Constitution. Dealing with the doctrine of implied limitations, he says that it is clearly untenable. Posing the question, is there a law about the amending power of the Constitution, he answers, there is none. He would even go to the extent of saying that the sovereignty, if it can be said to exist at all, is located in the amending body. The author is certainly a strong advocate of the supremacy of the amending power and an opponent of the doctrine of implied limitations. His opinion is based upon the terms of Art. 5 of the Constitution of the United States of America and his interpretation of the decisions of the Supreme Court of America. Even such an extreme exponent of the doctrine does not say that a particular constitution cannot expressly import restrictions on the power to amend or that a court cannot reconcile the articles couched in unlimited phraseology. Indeed Art. 5 of the American Constitution imposes express limitations on the amending power.; James Wilford Garner Munro, *Political Science and Government* (see, para 47 of the judgment): “An unamendable constitution, said Mulford, is the “worst tyranny of time, or rather the very tyranny of time.” But he also notices: “The provision for amendment should be neither so rigid as to make needed changes practically impossible nor so flexible as to encourage frequent and unnecessary changes and thereby lower the authority of the Constitution.”; Munro, *The Government of the United States* (see, para 47 of the judgment): “[I]t is impossible to conceive of an unamendable constitution as anything but a contradiction in terms.”; Hugh Evander Willis, *Constitutional Law of the United States*; Herman Finer, *The Theory and Practice of Modern Government*; William S. Livingston, *Federalism and Constitutional Change*; *American Jurisprudence* (2nd Edition, Vol. 16); C. F. Strong, *The Government of the United States* (1963); Edwards S. Corwin, *Constitution of the United States of America*, “Judicial Review under Article V”, Legislative Reference Service, Library of Congress (1953).

or implied limitations imposed on that power. As we have pointed out earlier, our Constitution adopted a novel method in the sense that Parliament makes the amendment by legislative process subject to certain restrictions and that the amendment so made being “law” is subject to Article 13(2).⁷²

With regard to the question of “amendment” in Article 368 of the Constitution that the said expression has a positive and a negative content and that in exercise of the power of amendment Parliament cannot destroy the structure of the Constitution, but it can only modify the provisions thereof within the framework of the original instrument for its better effectuation, he was of the opinion that this question may arise for consideration only if Parliament seeks to destroy the structure of the Constitution embodied in the provisions other than in Part III of the Constitution and we do not, therefore, propose to express our opinion in that regard.⁷³ And the Court also not expressed any opinion on the question whether the amendment of the fundamental rights is covered by the proviso to Article 368.⁷⁴

The Court declared that the Constitution (Seventeenth Amendment) Act, 1964, inasmuch as it takes away or abridges the fundamental rights is void under Art. 13(2) of the Constitution.⁷⁵ With regard to question of giving retrospective effect to its decision, the Court was of the observation that from the history of these amendments, two things appear, namely unconstitutional laws were made and they were protected by the amendment of the Constitution or the amendments were made in order to protect the future laws which would be void but for the amendments. But the fact remains that this Court held as early as in 1951 that Parliament had power to amend the fundamental rights. It may, therefore, be said that the Constitution (Fourth Amendment) Act, 1955, and the Constitution (Seventeenth Amendment) Act, 1964,

⁷² [1967] 2 SCR 762, para 54.

⁷³ *Id.*, at 55.

⁷⁴ *Id.*, at 56.

⁷⁵ *Id.*, at 57.

were based upon the scope of the power to amend recognized by this Court. Further the Seventeenth Amendment Act was also approved by the Court.⁷⁶ The Court expressed its concern that in the constitutional field, to meet the present extraordinary situation that may be caused by our decision, we must evolve some doctrine which has roots in reason and precedents so that the past may be preserved and the future protected.⁷⁷ And after referring to various judicial pronouncements,⁷⁸ the Court reached to the conclusion that the opinion of Justice Cardozo in *Great Northern Railway v. Sunburst Oil & Ref. Co.*⁷⁹ tried to harmonize the doctrine of prospective overruling with that of *stare decisis*.⁸⁰

The Court at the first step gave a justification for adopting the doctrine of prospective overruling by making the following observations:

It is really a pragmatic solution reconciling the two conflicting doctrines, namely, that a court finds law and that it does make law. It finds law but restricts its operation to the future. It enables the court to bring about a smooth transition by correcting its errors without disturbing the impact of those errors on the past transactions. It is left to the discretion of the court to prescribe the limits of the retroactivity and thereby it enables it to mould the relief to meet the ends of justice⁸⁰. . . . In India there is no statutory prohibition against the court refusing to give retroactivity to the law declared by it. . . Indian court by interpretation reject retroactivity to statutory provisions though couched in general terms on the ground that they affect vested rights.

⁷⁶ *Id.*, at 58.

⁷⁷ *Id.*, at 59.

⁷⁸ The referred cases were: opinion of Hughes, C.J., in *Chicot County Drainage District v. Baxter State Bank*, [1940] 308 U.S. 371; *Griffin v. Illinois*, [1956] 351 U.S. 12; *Wolf v. Colorado*; *Mapp v. Ohio*; opinion of Clarke, J., in *Linkletter v. Walker*, [1965] 381 U.S. 618.

⁷⁹ 1932 judgment of the United States Supreme Court, soon after Cardozo became the Associate Justice.

⁸⁰ [1967] 2 SCR 762, at 63-64.

⁸⁰ *Id.*, at 73.

The present case only attempts a further extension of the said rule against retroactivity.⁸¹

Our Constitution does not expressly or by necessary implication speak against the *doctrine of prospective over-ruling*. Indeed, Arts. 32, 141 and 142 are couched in such wide and elastic terms as to enable this Court to formulate legal doctrines to meet the ends of justice. The only limitation thereon is reason, restraint and injustice. . . The expression “declared” is wider than the words “found or made”. To declare is to announce opinion. Indeed, the latter involves the process, while the former expresses result. . . The law declared by the Supreme Court is the law of the land. . . To deny this power to the Supreme Court on the basis of some outmoded theory that the Court only finds law but does to make it is to make ineffective the powerful instrument of justice placed in the hands of the highest judiciary of this country.⁸²

As to the application of doctrine of prospective overruling, Court made the following propositions:

(1) The doctrine of prospective over-ruling can be invoked only in matters arising under our Constitution; (2) it can be applied only by the highest court of the country, i.e., the Supreme Court as it has the constitutional jurisdiction to declare law binding on all the courts in India; (3) the scope of the retroactive operation of the law declared by the Supreme Court superseding its earlier decisions is left to its discretion to be moulded in accordance with the justice of the cause or matter before it.⁸³ . . . We have arrived at two conclusions, namely, (1) Parliament has no power to amend Part III of the Constitution so as to take away or abridge the fundamental rights; and (2) this is a fit case to invoke and apply the doctrine of prospective overruling.

As to the effect of *doctrine of prospective overruling* and conclusion, the Court observed:

⁸¹*Id.*, at 74.

⁸²*Id.*, at 75.

⁸³*Id.*, at 76.

Having regard to the history of the amendments, their impact on the social and economic affairs of our country and the chaotic situation that may be brought about by the sudden withdrawal at this stage of the amendments from the Constitution, we think that considerable judicial restraint is called for. We, therefore, declare that our decisions will not affect the validity of the constitution (Seventeenth Amendment) Act, 1964, or other amendments made to the Constitution taking away or abridging the fundamental rights. We further declare that in future Parliament will have no power to amend Part III of the Constitution so as to take away or abridge the fundamental rights. In this case we do not propose to express our opinion on the question of the scope of the amendability of the provisions of the Constitution other than the fundamental rights, as it does not arise for consideration before us. Nor are we called upon to express our opinion on the question regarding the scope of the amendability of Part III of the Constitution otherwise than by taking away or abridging the fundamental rights. We will not also indicate our view one way or other whether any of the Acts questioned can be sustained under the provisions of the Constitution without the aid of Arts. 31A, 31B and the Ninth Schedule.⁸⁴

The Chief Justice after writing the conclusion and results of the judgment, further felt it necessary to advert to an argument advanced (relating to amendment of the Constitution) on emotional plane and discussed in five paragraphs. With regard to the argument if the power of amendment is not all comprehensive there will be no way to change the structure of our Constitution or abridge the fundamental rights even if the whole country demands for such a change, he wrote *"this visualizes an extremely unforeseeable and extravagant demand; but even if such a contingency arises, the residuary power of the*

⁸⁴*Id.*, at 77.

parliament may be relied upon to call for a Constituent Assembly for making a new Constitution of radically changing it."⁸⁵

While some dissenting judges like Wanchoo, *J.*⁸⁶ expressed his view that no limitation should be implied on the amending power of the Parliament under Article 368. He gave the argument that "basic feature would lead to the position that any amendment made to any Article of the Constitution would be subject to the challenge before the Courts on the ground that it amounts to the amendment of the basic structure."⁸⁷ Ramaswami, *J.* held that the Constitution makers had not expressly provided any such limitation on the amending power of Parliament and hence there was no inviolability attached to the fundamental rights through the amending process. Hidayatullah, *J.*⁸⁸ who concurred with the majority's opinion observed that the power of amendment was not located in the residuary power of legislation. Article 368 provided a procedure which, when complied with, results in an amendment of the Constitution. If it could be called a power at all, it was a legislative power, but it was *sui generis*. Since, a constitutional amendment was a law, Article 13(2) barred any

⁸⁵*Id.*, at 79.

⁸⁶ He had also been the part of majority in *Sajjan Singh*.

⁸⁷[1967] 2 SCR 762, at 116.

⁸⁸The conclusion of his opinion were: (i) that the Fundamental Rights are outside the amendatory process if the amendment seeks to abridge or take away any of the rights; (ii) that *Sankari Prasad's case* (and *Sajjan Singh's case* which followed it) conceded the power of amendment over Part III of the Constitution on an erroneous view of Art. 13(2) and 368; (iii) that the First, Fourth and Seventh Amendments being part of the Constitution by acquiescence for a long time, cannot now be challenged and they contain authority for the Seventeenth Amendment; (iv) that this Court having now laid down that Fundamental Rights cannot be abridged or taken away by the exercise of amendatory process in Art. 368, any further inroad into these rights as they exist today will be illegal and unconstitutional unless it complies with Part III in general and Art. 13(2) in particular; (v) *that for abridging or taking away Fundamental Rights, a Constituent body will have to be convoked*; and (vi) that the two impugned Acts, namely, the Punjab Security of Land Tenures Act, 1953 (X of 1953) and the Mysore Land Reforms Act, 1961 (X of 1962) as amended by Act XIV of 1965 are valid under the Constitution not because they are included in Schedule 9 of the Constitution but because they are protected by Art. 31-A, and the President's assent.

amendment which abridged or took away fundamental rights. Further, he observed that for abridging or taking away Fundamental Rights, a Constituent body will have to be convoked. It is not surprising that the majority shrank from the practical consequences of the judgement.

And, finally the results⁸⁹ of the judgment were:

The power of the Parliament to amend the Constitution is derived from Articles 245, 246 and 248 of the Constitution and not from Article 368 thereof which only deals with procedure. Amendment is a legislative process.

Amendment is “law” within the meaning of Article 13 of the Constitution and, therefore, if it takes away or abridges the rights conferred by Part III thereof, it is void.

The Constitution (First Amendment) Act, 1951, Constitution (Fourth Amendment) Act, 1955, and the Constitution (Seventeenth Amendment) Act, 1964, abridge the scope of the fundamental rights. But, on the basis of earlier decisions of this Court, they were valid. On the application of the doctrine of “*prospective over-ruling*”, the decision will have only prospective operation and, therefore, the said amendments will continue to be valid.

We declare that the Parliament will have no power from the date of this decision to amend any of the provisions of Part III of the Constitution so as to take away or abridge the fundamental rights enshrined therein.

As the Constitution (Seventeenth Amendment) Act holds the filed, the validity of the two impugned Acts, namely, the Punjab Security of Land Tenures Act X of 1953, and the Mysore Land Reforms Act X of 1962, as amended by Act XIV of 1965, cannot be questioned on the ground that they offend Articles. 13, 14, or 31 of the Constitution.

⁸⁹*Supra* note 88 at 78.

By a majority of 6:5, it was held that the '*Parliament had no power to amend the fundamental rights.*' This judgment gave more rise to the ongoing tussle between the Parliament and Judiciary. The judges in their majority overruled the *Sajjan Singh* case. So, in conclusion, the effect of *Golakhnath* judgment was not having any effect on the *Golakhnath* case because of the doctrine of *prospective over-ruling*.

This judgment led the then Chief Justice S. M. Sikri to constitute a bench of thirteen judges to deal with the challenged constitutional amendments and review the decision in *Golakhnath*.

KESHAVANANDA BHARATI SRIPADAGALVARU⁹⁰

The tussle between the Judiciary and the Parliament took a totally different shape after the decision in *Golak Nath*. The Constitution

⁹⁰*Keshavananda Bharati Sripadagalvaru v. State of Kerala*, AIR 1973 SC 1461. Thirteen judges bench judgment delivered on 24 April 1973 with a razor thin majority of 7:6 after sixty-eight hearings. The bench consisted of S. M. Sikri, C.J., A. N. Grover, A. N. Ray, D. G. Palekar, H. R. Khanna, J. M. Shelat, K. K. Mathew, K. S. Hegde, M. Hameedullah Beg, P. Jaganmohan Reddy, S. N. Dwivedi, A. K. Mukherjee and Y. V. Chandrachud, JJ. J. M. Shelat and A. N. Grover, JJ. in their joint separate opinion agreed with the opinion of Sikri, C.J. K. S. Hegde and A. K. Mukherjee, JJ. gave a joint judgment which is said to be concurring with majority. Jaganmohan Reddy, J. concluded in the same manner as to that of majority, thus, not completely a concurring judgment. A. N. Ray, D. G. Palekar, K. K. Mathew, M. H. Beg, S. N. Dwivedi and Y. V. Chandrachud, JJ. wrote their individual dissenting opinions. And H. R. Khanna, J. wrote his separate opinion which was lifted by Sikri, C.J. is believed to have tipped the scale in favour of the majority opinion. To avoid any doubts and since as many as nine judgments were delivered by the thirteen judges constituting the Bench, a summary of the conclusions was prepared. This summary was signed by nine of the thirteen judges. Among the nine signatories were two judges who were in the minority. One of the conclusions agreed upon by the nine judges who signed the summary was '*Article 368 does not enable Parliament to alter the basic structure or framework of the Constitution.*' The case was filed in 1970 and *rule nisi* was issued on 25 March 1970. At the time when the case was filed, the total strength of the Supreme Court judges was eleven. But, on the date of judgment, the total strength of judges was fourteen and the only judge who was not in the bench was A. Alagiriswami, J. (he was appointed on 17 October 1972). The judgment was delivered on April 24 1973 (Tuesday), a day before the retirement of S. M. Sikri, C.J. Out of thirteen judges, three judges later became the Chief Justice of India—A. N. Ray, J. (on 26 April 1973), M. H. Beg, J. (on 29 January 1977) and Y. V. Chandrachud, J. (on 22 February 1978).

(Twenty-fourth Amendment) Act, 1971⁹¹ was passed to nullify the *Golak Nath* decision.⁹² Clauses were added in Article 368 to blanket the Parliament with an omnibus constituent power. The Constitution (Twenty-fifth Amendment) Act, 1971⁹³ introduced a new provision Article 31C⁹⁴ in the Constitution under which law giving effect to the Directive Principles of the State Policy enumerated under Part IV of the Constitution were deemed automatically be valid despite any inconsistency with the fundamental rights granted under Articles 14, 19 and 31.⁹⁵ And, the Constitution (Twenty-ninth Amendment) Act, 1971⁹⁶ inserted two legislations in the Ninth Schedule after entry 64, namely: The Kerala Land Reforms (Amendment) Act, 1969,⁹⁷ and the Kerala Land Reforms (Amendment) Act, 1971.⁹⁸

Keshavananda Bharati Sripadagalavaru of Kerala filed a petition under Article 32 for the enforcement of his fundamental rights guaranteed under Articles 14, 19(1)(f), 25, 26, 31(1) and 31(2) of the

⁹¹The Constitution (Twenty-fifth Amendment) Act came into force on November 5, 1971.

⁹²*Supra note* at 39. The marginal note of the Article 368 was amended to read: 'Power of Parliament to amend the Constitution and Procedure Therefor'. The procedure for amendment contained in the original Article 368 was incorporated as Article 368(2). Article 368(3) provides- 'Nothing in article 13 shall apply to any amendment made under this article.' For that very purpose, as a matter of caution similar provision was added in Article 13 (4) which provide— "Nothing in this article shall apply to any amendment of this Constitution made under article 368."

⁹³The Constitution (Twenty-fifth Amendment) Act came into force on April 20, 1972.

⁹⁴Article 31C of the Constitution of India deals with saving of laws giving effect to certain directive principles.

⁹⁵Article 14 reads as: *Equality before law*.— The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.; Article 19 of the Constitution of India deals with *protection of certain rights regarding freedom of speech, etc.* Article 19(1)(f) guaranteed the right to acquire, hold and dispose of property which was omitted by the Constitution (Forty-fourth Amendment) Act, 1978, Section 2 (w.e.f. 20.06.1979); Article 31 dealing with *Compulsory acquisition of property* which was later omitted by the Constitution (Forty-fourth Amendment) Act, 1978, Section 6 (w.e.f. 20.6.1979).

⁹⁶The Constitution (Twenty-ninth Amendment) Act came into force on June 9, 1972.

⁹⁷Kerala Act 35 of 1969.

⁹⁸Kerala Act 25 of 1971.

Constitution. He prayed that the provisions of the Kerala Land Reforms Act, 1963 as amended in 1969 and later in 1971, the Constitution (Twenty-fourth Amendment) Act, 1971 and the Constitution (Twenty-fifth Amendment) Act, 1971 be declared ultra vires to the Constitution. The matter was heard by the largest ever constituted bench consisting of 13 judges to review the decision of the Court in the *Golak Nath*.

Chief Justice Sikri, who delivered the majority judgment, divided the judgments into eight parts.⁹⁹ After giving an introduction of the case and before proceeding with the main task, he came with an opinion to ask one question, what was decided in *I. C. Golaknath case*? In furtherance to this question, he referred to the *Sankari Prasad* and *Sajjan Singh* cases emphasizing on the observation of judges in those judgments.¹⁰⁰

As to the interpretation of Article 368¹⁰¹ (*as originally enacted*), he observed: The expression “*amendment of the Constitution*” is not defined or expanded in any manner, although in other parts of the Constitution, the word “amend” or “amendment” has been expanded. In some parts they have clearly a narrow meaning. The proviso throws some light on the problem. First, it uses the expression “if such amendment seeks to make any change in”; it does not add the words “change of”, or omit “in”, and say “seeks to change” instead of the expression “seeks to make any change in”.¹⁰² Further, he observed:

⁹⁹Part I dealt with Introduction; Part II with the interpretation of *Golaknath case*; Part III with the interpretation of the original Article 368, as it existed prior to its amendment; Part IV with the validity of the Constitution (Twenty-fourth Amendment) Act; Part V with the validity of Section 2 of the Constitution (Twenty-fifth Amendment) Act; Part VI with the validity of Section 3 of the Constitution (Twenty-fifth Amendment) Act; Part VII with Constitution (Twenty-ninth Amendment) Act; and Part VIII with conclusions. AIR 1973 SC 1461, at 1.

¹⁰⁰AIR 1973 SC 1461, at 16-50.

¹⁰¹*Supra note at 29* for the text of Article 368; *See generally*, paras 51-400 of the judgement.

¹⁰²AIR 1973 SC 1461, at 53.

This analysis of the provisions contained in Clauses (a) and (b) of the proviso to Article 368 shows that the reason for including certain articles and excluding certain other from the proviso was not that all articles dealing with the federal structure or the status of the States had been selected for inclusion in the proviso. . . . The provisions of Sub-clauses (c), (d) and (e) can rightly be said to involve the federal structure and the rights of the States.¹⁰³

What again is remarkable is that the fundamental rights are not included in the proviso at all. Were not the States interested in the fundamental rights of their people? The omission may perhaps be understandable because of the express provision of Article 13(2). . . . In construing the expression “amendment” of this Constitution I must look at the whole scheme of the Constitution.¹⁰⁴

In the Constitution the word “amendment” or “amend” has been used in various places to mean different things. In some articles, the word “amendment” in the context has a wide meaning and, in another context, it has a narrow meaning.¹⁰⁵

[T]here is no doubt from a perusal of these provisions¹⁰⁶ that different words have been used to meet different demands. In view of the great variation of the phrases used all through the Constitution it follows that the word “amendment” must derive its colour from Article 368 and the rest of the provisions of the Constitution. There is no doubt that it is not intended that the whole Constitution could be repealed. This much is conceded by the learned Counsel for the respondents.¹⁰⁷

Referring to the Preamble and Fundamental Rights, he observed:

¹⁰³*Id.*, at 59-60.

¹⁰⁴*Id.*, at 60-61 and 68.

¹⁰⁵*Id.*, at 68.

¹⁰⁶He referred to the Articles 107, 111 and 4(1) of the Constitution of India.

¹⁰⁷AIR 1973 SC 1461 at 88.

Not only was the Constitution framed in the light of the Preamble but the Preamble was ultimately settled in the light of the Constitution.¹⁰⁸

If the language of the enactment is capable of more than one meaning then that one is to be preferred which comes nearest to the purpose and scope of the preamble¹⁰⁹. . . .Our Preamble outlines the objectives of the whole Constitution. It expresses “*what we had thought or dreamt for so long.*”¹¹⁰

[T]he Court was wrong in holding¹¹¹ that the Preamble is not a part of the Constitution unless the court was thinking of the distinction between the Constitution Statute and the Constitution, mentioned by Mr. Palkhivala. It was expressly voted to be a part of the Constitution. Further, with respect, no authority has been referred before us to establish the proposition that “what is true about the powers is equally true about the prohibitions and limitations.” As I will show later, even from the preamble limitations have been derived in some cases.¹¹²

(emphasis added)

It is impossible to equate the directive principles with fundamental rights though it cannot be denied that they are very important. But to

¹⁰⁸*Id.*, at 92. He referred to the Shiva Rao’s ‘*Framing of India’s Constitution-A Study*’, p. 127; In the earliest draft the Preamble was something formal and read: “We, the people of India, seeking to promote the common good, do hereby, through our chosen representatives, enact, adopt and give to ourselves this Constitution.”

¹⁰⁹*Id.*, at 97. He referred to the Tribhuban Parkash Nayyar v. Union of India, [1970] 2 SCR 732.

¹¹⁰*Id.*, at 98. He further observed referring to the Constituent Assembly Debates Vol. 10, p. 417 that “We are, however, not concerned with the interpretation of an ordinary statute. As Sir Alladi Krishnaswami, a most eminent lawyer said, “so far as the Preamble is concerned, though in an ordinary statute we do not attach any importance to the Preamble, all importance has to be attached to the Preamble in a Constitutional statute”.

¹¹¹*Id.*, at 99-101. He referred to the Re. Berubari Union and Exchange of Enclaves, [1960] 3 SCR 250, observation of Wanchoo, J. in I. C. Golaknath v. State of Punjab, [1967] 2 SCR 762 (which he relied on *Berubari’s case*) and observation of Bachawat, J. in Re. Berubari Union & Exchange of Enclaves, [1960] 3 SCR 250.

¹¹²*Id.*, at 102.

say that the directive principles give a directive to take away fundamental rights in order to achieve what is directed by the directive principles seems to me a contradiction in terms.¹¹³

It seems to me that the concept of amendment within the contours of the Preamble and the Constitution cannot be said to be a vague and unsatisfactory idea which Parliamentarians and the public would not be able to understand.¹¹⁴

[E]very provision of the Constitution can be amended provided in the result the basic foundation and structure of the Constitution remains the same. The basic structure may be said to consist of the following features:

- Supremacy of the Constitution;
- Republican and Democratic form of Government;
- Secular character of the Constitution;
- Separation of powers between the Legislature, the executive and the judiciary;
- Federal character of the Constitution.¹¹⁵

The above foundation and the above basic features are easily discernible not only from the preamble but the whole scheme of the Constitution.¹¹⁶

In connection with the question of abrogation of fundamental rights as put forth by Mr. Seervai that there was no such thing as natural or inalienable rights because the scheme of Part III itself shows that non-citizens have not been given all the fundamental freedoms.¹¹⁷ Sikri, C. J. observed:

¹¹³*Id.*, at 152.

¹¹⁴*Id.*, at 301.

¹¹⁵*Id.*, at 302.

¹¹⁶*Id.*, at 304.

¹¹⁷*Id.*, at 305-308. Mr. Seervai asserted that if there were natural rights, why is it that they were not conferred on non-citizens. The answer seems to be that they are

I am unable to hold that these provisions show that some rights are not natural or inalienable rights. As a matter of fact, India was a party to the Universal Declaration of Rights which I have already referred to and that Declaration describes some fundamental rights as inalienable. . . . Various decisions of this Court describe fundamental rights as '*natural rights*' or '*human rights*'.¹¹⁸

Declaring the Constitution (Twenty-Fourth Amendment) Act, 1971 as constitutionally valid, he made the following observations:

Clause (e) of the proviso does not give any different power than what is contained in the main article. The meaning of the expression "Amendment of the Constitution" does not change when one reads the proviso. If the meaning is the same, Article 368 can only be amended so as not to change its identity completely. . . . Similarly, it cannot get rid of the true meaning of the expression "Amendment of the Constitution" so as to derive power to abrogate fundamental rights.¹¹⁹

Article 13(2) as existing previous to the 24th Amendment as interpreted by the majority in *Golak Nath's case* prevented legislatures from taking away or abridging the rights conferred by Article 13. . . . The amendment of Article 13(2) does not go beyond the limits laid down because Parliament cannot even after the amendment abrogate or authorize abrogation or the taking away of fundamental rights. After the amendment now a law which has the effect of merely abridging a

natural rights but our country does not think it expedient to confer these fundamental rights, mentioned in Article 19, on noncitizens. Other rights have been conferred on non-citizens because the Constitution-makers thought that it would not be detrimental to the interests of the country to do so. Further, he said that there is power to modify those rights under Article 33 of the Constitution, which enables Parliament to modify rights in their application to the Armed Forces; and Article 34 restricts fundamental rights while martial law is in force in any area. He then pointed out Articles 358 and 359 where certain rights are suspended during Emergency. These provisions are again based on the security of the country.

¹¹⁸*Id.*, at 309-310.

¹¹⁹*Id.*, at 408.

right while remaining within the limits laid down would not be liable to be struck down. . . .¹²⁰

Holding the Section 2 of the Constitution (Twenty-fifth Amendment) Act, 1971 as constitutionally valid, he observed:

There cannot be any doubt that the object of the amendment is to modify the decision given by this Court in *Rustom Cavasjee Cooper v. Union of India*¹²¹ where it was held by ten Judges that the Banking Companies (Acquisition and Transfer of Undertakings) Act violated the guarantee of compensation under Article 31(2) in that it provided for giving certain amounts determined according to principles which were not relevant in the determination of compensation of the undertaking of the named Banks and by the method prescribed the amounts so declared could not be regarded as compensation.¹²²

If we compare Article 31(2) as it stood before and after the 25th Amendment, the following changes seem to have been affected. Whereas before the amendment, Article 31(2) required the law providing for acquisition to make provision for compensation by either fixing the amount of compensation or specifying the principles on which and the manner in which the compensation should be determined after the amendment Article 31(2) requires such a law to provide for an “amount” which may be fixed by the law providing for acquisition or requisitioning or which may be determined in accordance with such principles and given in such manner as may be specified in such law. In other words, for the idea that compensation should be given, now the idea is that an “amount” should be given. This amount can be fixed directly by law or may be determined in accordance with such principles as may be specified.¹²³

¹²⁰*Id.*, at 410-411.

¹²¹[1970] 3 SCR 530.

¹²²*Supra* note 91 at 413.

¹²³*Id.*, at 414.

It is very difficult to comprehend the exact meaning which can be ascribed to the word “amount”. In this context, it is true that it is being used in lieu of compensation, but the word “amount” is not a legal concept as “compensation” is.¹²⁴ . . . The figurative meaning, i.e., the full value, I cannot give because of the deliberate omission of the word “compensation” and substitution of the word “amount” in lieu thereof.¹²⁵

While passing a law fixing principles, the legislatures are bound to provide a procedure for the determination of the amount, and if the procedure is arbitrary that provision may well be struck down under Article 14.¹²⁶

As to the constitutional validity of Section 3 of the Constitution (Twenty-fifth Amendment) Act, 1971, he observed as under:

[T]his Court would be unable to test the validity of incidental provisions which do not constitute an essential and integral part of the policy directed to give effect to Article 39(b) and Article 39(c).¹²⁷ . . . The Courts will be unable to separate necessarily incidental provisions and merely incidental. Further. . . this question is not justiciable if the law contains a declaration that it is for giving effect to such a policy.¹²⁸

It seems to me that in effect, Article 31C enables States to adopt any policy they enable the State to amend the Constitution.¹²⁹

It will be recalled that Article 19 deals not only with the right to property but it guarantees various rights. . . I am unable to appreciate the reason for giving such powers to the State legislature to abrogate

¹²⁴*Id.*, at 415.

¹²⁵*Id.*, at 418.

¹²⁶*Id.*, at 428; *see* at 428-430.

¹²⁷*Id.*, at 433.

¹²⁸*Id.*, at 444.

¹²⁹*Id.*, at 445.

the above freedoms. In effect, Parliament is enabling State legislatures to declare that a citizen shall not be free; he will have no freedom of speech to criticize the policy of the State; he shall not assemble to protest against the policy; he shall be confined to a town or a district and shall not move outside his State; a resident of another state shall not enter the State which is legislating; he shall not, if a lawyer, defend people who have violated the law. It could indeed enable legislatures to apply one law to political opponents of the ruling party and leave members of the party outside the purview of the law. In short, it enables a State Legislature to set up complete totalitarianism in the State. It seems that its implications were not realized by Parliament though Mr. Palkhiwala submits that every implication was deliberately intended.¹³⁰

I have no doubt that the State legislatures and Parliament in its ordinary legislative capacity will not exercise this new power conferred on them fully but I am concerned with the amplitude of the power conferred by Article 31C and not with what the legislatures may or may not do under the powers so conferred. . . I have already held that Parliament cannot under Article 368 abrogate fundamental rights. Parliament equally cannot enable the legislatures to abrogate them. This provision thus enables legislatures to abrogate fundamental rights and therefore must be declared un-constitutional.¹³¹

Section 3 of the Constitution (Twenty-fifth Amendment) Act 1971 is void as it delegates power to legislatures to amend the Constitution.¹³²

As to the validity of the Constitution (Twenty-ninth Amendment) Act, 1972, he observed as under:

Article 368 does not enable Parliament to abrogate or take away fundamental rights. If this is so, it does not enable Parliament to do this by any means, including the device of Article 31-B and the Ninth

¹³⁰*Id.*, at 446.

¹³¹*Id.*, at 411.

¹³²*Id.*, at 473.

Schedule. This device of Article 31-B and the Ninth Schedule is bad insofar as it protects statutes even if they take away fundamental rights. Therefore, it is necessary to declare that the Twenty-ninth Amendment is ineffective to protect the impugned Acts if they take away fundamental rights.¹³³

Constitutional amendments *hitherto* made in, Article 19 and Article 15 and, the agrarian laws enacted by various States furnish illustrations of reasonable abridgement of fundamental rights in the public interest.¹³⁴

It was said during the arguments that one object of Article 31-B was to prevent time-consuming litigation, which held up implementation of urgent reforms. . . Surely, this is not a good reason to deprive persons of their fundamental rights. There are other ways available to the Government to expedite the decision. It may for example propose ordinary legislation to enable parties to approach the Supreme Court for transfer of such cases to the Supreme Court for determination of substantial questions of interpretation of the Constitution.¹³⁵

To summarize, he held that:¹³⁶

- *Golak Nath's case* declared that a Constitutional amendment would be bad if it is infringed Article 13(2), as this applied not only to ordinary legislation but also to an amendment of the Constitution.
- *Golak Nath's case* did not decide whether Article 13(2) can be amended under Article 368 or determine the exact meaning of the expression "amendment of this Constitution" in Article 368.
- The expression "amendment of this Constitution" does not enable Parliament to abrogate or take away, fundamental rights or to completely change the fundamental features of the Constitution so

¹³³*Id.*, at 486.

¹³⁴*Id.*, at 490.

¹³⁵*Id.*, at 491.

¹³⁶*Id.*, at 492.

as to destroy its identity. Within these limits Parliament can amend every article.

- The Constitution (Twenty-fourth Amendment) Act, 1971, as interpreted by me, has been validly enacted.
- Article 368 does not enable Parliament in its constituent capacity to delegate its function of amending the Constitution to another legislature or to itself in its ordinary legislative capacity.
- Section 2 of the Constitution (Twenty-fifth Amendment) Act, 1971, as interpreted by me, is valid.
- Section 3 of the Constitution (Twenty-fifth Amendment) Act, 1971 is void as it delegates power to legislatures to amend the Constitution.
- The Constitution (Twenty-ninth Amendment) Act, 1971 is ineffective to protect the impugned Acts if they abrogate or take away fundamental rights. The Constitution Bench will decide whether the impugned Acts take away fundamental rights or only abridge them, and in the latter case whether they effect reasonable abridgements in the public interest.
- The Constitution Bench will determine the validity of the Constitution (Twenty-sixth Amendment) Act, 1971 in accordance with this judgment, and the law. . . . The cases are remitted to the Constitution Bench to be decided in accordance with this judgment, and the law. The parties will bear their own costs.¹³⁷

Before discussing the dissenting and concurring opinions of the judges, let us in brief summarize the issues and questions involved in the case.

As to the first issue relating to the meaning of the words ‘amend’ and ‘amendment’, the Court emphasize that the Constitution is first and foremost a ‘social document’ and is based upon the socio-economic ideals of the freedom struggle; and made a very clear observation that any amendment to the Constitution has to be within the limits of the

¹³⁷*Id.*, at 493-494.

essence of the Constitution.¹³⁸ The Court referring to the earlier cases held that Article 368 was the only source and even after the Constitution (Twenty-fourth Amendment) Act, 1971, Article 368 is the only source of the amending power. To the second issue, can it be said that the amendment is done by the people of India directly and therefore being a sovereign, the people of India can amend anything in the Constitution, it was held that India is a representative democracy and once people have elected their representatives, the amendment has to be done by the Parliament and not by the people directly. There is no system of referendum in India and therefore, it is not the people of India who directly amend the Constitution or make any law. The Parliament has to act within the domain of the Constitution.¹³⁹ Third issue was, by declaring the constituent power, has the Parliament acquired for itself, the power to rise above the Constitution and bring about any alteration in the Constitution? The Court made it very clear that the *constituent power of the Parliament cannot be equated to the constituent power of the Constituent Assembly*. The Constituent Assembly had the original constituent power under which it created the Constitution itself. It was not limited by any pre-existing Constitution as such. On the other hand, the Parliament's constituent power is a derivative power as derived from the Constitution itself. In fact, the Parliament itself is the creation of the Constitution and

¹³⁸It was in the course of the freedom struggle that the various promises were made for bringing about a social revolution in the society and these principles are indispensable for the Indian society and accordingly the Constitution also has to be essentially based upon these principles. It is these principles and values, which provide the organic entity and vitality to the Constitution. The Parliament which is a creation of the Constitution cannot rob the Constitution of its vitality because the Constitution has its own Identity. And, this Identity relates to the essential principles on which the Constitution is based and the same cannot be taken away by any process of amendment, in fact, the Constitution does not provide for any mechanism by which the very Identity of the Constitution can be taken away.

¹³⁹Sovereignty is no doubt vested in the people of India but it is only the political sovereignty. Legal sovereignty is vested in the Constitution of India i.e., the Constitution is the supreme and not the people of India. Once the people have given the Constitution to themselves, they have declared their promise to adhere to the Constitution and therefore, even the people cannot rise above the Constitution to alter the essence of the Constitution by any constitutional means.

therefore in the garb of having the constituent power, the Parliament cannot rise above the Constitution so as to acquire those powers for itself which was actually with the Constituent Assembly. Hence, the Parliament in its constituent power of amendment has to act within the limits of the Constitution. As to the fourth issue, does Article 13(2) controls Article 368, Sikri, *C.J.* did not get into this issue but Hedge and Mukherjee, *JJ.* held that there is a need for harmonization between Article 13(2) and Article 368. Article 13(2) refers to the ordinary legislative power of the Parliament and the State legislatures whereas, Article 368 refers to the constituent power of the Parliament to amend the Constitution and is above the limitation of Article 13(2) though it subject to the doctrine of basic structure. The Court did not read any conflict between the two, rather it just held that the field of application of the two are just distinct and hence they do not control each other.

The fifth issue before the Court was, are the fundamental rights amendable? The Court answered that fundamental rights are amendable but the basic structure is not. The wordings used in the various fundamental rights in themselves may not be the essence of the Constitution rather the principles behind those words *i.e.*, Articles are the elements of the basic structure. An amendment of the word used in the Articles on fundamental rights are permissible only to the extent that the basic structure of the Constitution does not adversely get affected. The sixth issue was related to the application of '*doctrine of implied limitation*' on Indian Constitution and the Court answered in affirmative. To the seventh issue regard to the scope of judicial review in reference to Article 368, the Court held that it can interfere in any amendment of the Constitution from the perspective of the '*Substantive limitations- basic structure*' and the '*Procedural limitation- Article 268(2)*'. Eighth issue was relating to the scope and extent of the amending power with respect to Article 368 and the Court held that Article 368 cannot be amended but the spirit of midway amendment process cannot be taken away. The Constitution neither be made too rigid nor can it be made too flexible. Similarly, on

the substantive part, Article 368 cannot be amended to an extent so as to acquire to itself the power to take away or abridge even the basic structure. And, to the question, is not the doctrine a vague doctrine, the Court held that the doctrine cannot be said to be vague merely because it cannot be rigidly defined or all the elements of basic structure have not been enumerated.¹⁴⁰

On the point that the Constituent Assembly would hide the power to amend the Constitution in its residuary power was refused by *Hedge and Mukherjee, JJ.* The view as expressed in the *Golak Nath* was overruled. The Court found a distinction between the term 'Constitutional Law' and 'law' used under Article 13 of the Constitution and held that the term 'Constitutional law' does fall in the purview of 'law' in Article 13.¹⁴¹ And also held that the amending

¹⁴⁰*Supra* note 91 at 599, 1171, 1441, 1444; Firstly, the Court is bound to decide only those issues which are actually before it. A decision upon any other issue will amount to an *obiter dictum* and will not be binding. Moreover, it is not possible to enumerate all the elements in one-go and it is not needed as well. The Court also held that merely because a particular concept of law cannot be rigidly defined, it does not cease to be a concept of law. Principles of natural justice and negligence also cannot be rigidly defined still they are effective concept of law. The test in this regard is that the ultimate purpose of the Constitution is the conservation of utility and integrity of the nation as also the dignity of the individual. This can be assured only by promoting fraternity. Any principle of law which if taken away from the Constitution would result into a loss of fraternity and unity and integrity of the nation and the dignity of the individual would be considered to be an essential feature of the Basic Structure.

¹⁴¹Nani Palkhivala who was leading the arguments on behalf of the petitioners developed an alternative argument changing the emphasis from the concept of 'law' in Article 13 to the concept of 'amendment' in Article 368. Even if you could amend the Constitution, it would surely mean that you could only 'change' but not 'destroy' it. This was a shift from the technical meaning of the word 'law' to a political theory attached to the concept of 'amendment'. Palkhivala raised a point before the Court in support of his argument that a Constitution given by a people to themselves reserving to themselves certain fundamental rights cannot possibly be radically altered by a Parliament created under that very Constitution. He also argued that even if the Article 368 were construed broadly, the preamble was not amendable and Article 368 could not be read as 'expressing the death wish of the Constitution or as a provision for its legal suicide.' (See, Palkhivala's propositions submitted to the Court are reproduced in (1973) 4 SCC 1). On behalf of the respondent, H. M. Seervai argued that the amending power of the Parliament was unlimited and has

power of the legislature shall be subject to a doctrine called the doctrine of 'basic structure' and therefore the parliament cannot use its constituent power under Article 368 so as to 'damage', 'emasculate', 'destroy', 'abrogate', 'change' or 'alter' the basic structure or framework of the Constitution.¹⁴²

LET US NOW DISCUSS THE OPINIONS OF THE JUDGES AS WRITTEN SEPARATELY AND JOINTLY (INCLUDING THE CONCURRING AND DISSENTING).

GROVER AND SHELAT, JJ. WERE OF THE FOLLOWING OBSERVATIONS:

If the Constitution makers were inclined to confer the full power of a Constituent Assembly, it could have been easily provided in suitable terms. If, however, the original power was limited to some extent, it could not be enlarged by the body possessing the limited power. That being so, even where an amending power is expressed in wide terms, it has to be exercised within the framework of the Constitution. *It cannot abrogate the Constitution or frame a new Constitution or alter or change the essential elements of the Constitutional structure.* It cannot be overlooked that the basic theory of our Constitution is that "Pouvoir Constituent", is vested in the people and was exercised, for and on other behalf by the Constituent Assembly for the purpose of framing the Constitution.¹⁴³ *(Emphasis added)*

been so recognized until *Golak Nath*. In his view, the fundamental rights guaranteed by Part III were not 'human rights' but 'social rights' conferred on citizens by civilized society at a given time and were, therefore, susceptible to change from time to time.

¹⁴² According to the court in this case the word "amend" enjoys a very restrictive connotation and the court can look into the validity if it threatens to nullify or destroy any fundamental feature of the Constitution. *Keshavananda* also answered an important question which was left open by *Golak Nath*, as to whether Parliament has the power to rewrite the entire Constitution and bring in a new Constitution. The court answered this by saying that Parliament can only do that which does not modify the basic features of the Constitution;

¹⁴³ *Supra* note 91 at 556; They further observed that though the power to amend cannot be narrowly construed and extends to all the Articles it is not unlimited so as to include the power to abrogate or change the Identity of the Constitution or its

As to the vagueness of the basic structure of the Constitution, they observed:

[B]asic structure of the Constitution is not a vague concept and the apprehensions expressed on behalf of the respondents that neither the citizen nor the Parliament would be able to understand it are unfounded. If the historical background, the Preamble, the entire scheme of the Constitution, the relevant provisions thereof including Article 368 are kept in mind there can be no difficulty in discerning that the following can be regarded as the basic elements of the Constitutional structure. (These cannot be catalogued but can only be illustrated).¹⁴⁴ They declared the following as the basic features:

- The supremacy of the Constitution;
- Republican and Democratic form of Government and sovereignty of the country;
- Secular and federal character of the Constitution.
- Demarcation of power between the legislature, the executive and the judiciary;
- The dignity of the individual (secured by the various freedoms and basic rights in Part III and the mandate to build a welfare State contained in Part IV; and
- The unity and the integrity of the nation.

Hedge and Mukherjee, *JJ.* were of the observation that if the basic features are taken away to that extent the Constitution is abrogated or repealed, the amending power is subject to the implied limitations and Parliament has no power to emasculate or abrogate the 'basic elements' of the Constitution. As to the basic features of the Constitution, they observed:

basic features; even if the amending power includes the power to amend Article 13(2), a question not decided in *Golak Nath* case, the power is not so wide so as to include the power to abrogate or take away the fundamental freedoms.

¹⁴⁴*Id.*, at para 599.

[T]hat the Parliament has no power to abrogate or emasculate the basic elements or fundamental features of the Constitution such as the *sovereignty of India, the democratic character of our polity, the unity of the country, the essential features of the individual freedoms secured to the citizens*. Nor has the Parliament the power to revoke the mandate to build a *Welfare State* and egalitarian society. These limitations are only illustrative and not exhaustive. Despite these limitations, however, there can be no question that the amending power is a wide power and it reaches every Article and every part of the Constitution. That power can be used to reshape the Constitution to fulfil the obligations imposed on the State. It can also be used to reshape the Constitution within the limits mentioned earlier, to make it an effective instrument for social good. We are unable to agree with the contention that in order to build a Welfare State, it is necessary to destroy some of the human freedoms. . . Our Constitution envisages that the States should without delay make available to all the citizens of this country the real benefits of those freedoms in a democratic way. Human freedoms are lost gradually and imperceptibly and their destruction is generally followed by authoritarian rule. That is what history has taught us. Struggle between liberty and power is eternal. Vigilance is the price that we like every other democratic society have to pay to safeguard the democratic values enshrined in our Constitution. Even the best of governments are not averse to have more and more power to carry out their plans and programmes which they may sincerely believe to be in public interest. But a freedom once lost is hardly ever regained except by revolution. Every encroachment on freedoms sets a pattern for further encroachments. Our Constitutional plan is to eradicate poverty without destruction of individual freedoms.¹⁴⁵

A. N. Ray, *J.* holding the Twenty-fourth Constitutional Amendment constitutionally valid observed that ‘there are no express or implied

¹⁴⁵*Id.*, at 682.

limitations to the power of amendment' and said 'the power to amend is wide and unlimited'.¹⁴⁶ He further observed:¹⁴⁷

First, the power to amend the Constitution is located in Article 368. *Second*, neither the Constitution nor an amendment of the Constitution can be or is law within the meaning of Article 13. Law in Article 13 means laws enacted by the legislature subject to the provision of the Constitution. Law in Article 13(2) does not mean the Constitution. The Constitution is the supreme law. *Third*, an amendment of the Constitution is an exercise of the constituent power. The majority view in Golak Nath case is with respect wrong. *Fourth*, there are no express limitations to the power of amendment. *Fifth*, there are no implied and inherent limitations on the power of amendment. Neither the Preamble nor Article 13(2) is at all a limitation on the power of amendment. *Sixth*, the power to amend is wide and unlimited. The power to amend means the power to add, alter or repeal any provision of the Constitution. There can be or is no distinction between essential and in-essential features of the Constitution to raise any impediment to amendment of alleged essential features. Parliament in exercise of constituent power can amend any provision of this Constitution. Under Article 368 the power to amend can also be increased.

Jagmohan Reddy, *J.*, observed that essential elements constituting the basic structure cannot be amended. As to basic features of the Constitution, he observed:

The elements of the basic structure are indicated in the preamble and translated in the various provisions of the Constitution. The edifice of our Constitution is built upon and stands on several props, remove any of them, the Constitution collapses. These are: (1) *Sovereign Democratic Republic*; (2) *Justice, social, economic and political*; (3) *Liberty of thought, expression, belief, faith and worship*; (4) *Equality*

¹⁴⁶*Supra* note 91 at 1064.

¹⁴⁷*Id.*, at 1078.

of status and of opportunity. Each one of these is important and collectively they assure a way of life to the people of India which the Constitution guarantees. To withdraw any of the above elements the structure will not survive and it will not be the same Constitution, or this Constitution nor can it maintain its identity, if something quite different is substituted in its place, which the sovereign will of the people alone can do. There can be a Democratic Republic in the sense that people may be given the right to vote for one party or only one candidate either affirmatively or negatively, and are not given the choice to choose another opposed to it or him. Such a republic is not what has been assured to our people and is unthinkable by any one foresworn to uphold, defend, protect, or preserve or work the Constitution. A democratic republic that is envisaged is the one based on a representative system in which people holding opposing view to one another can be candidates and invite the electorate to vote for them. If this is the system which is the foundation of a democratic republic, it is unthinkable that it can exist without elements (2) to (4) above either collectively or separately.¹⁴⁸

As to the observation of Sikri, *C.J.*, that the expression 'amendment of this Constitution' does not enable Parliament to abrogate or take away fundamental rights or to completely change the fundamental features of the Constitution so as to destroy its identity; the minority judges dissented with the reason that there is no such limitation on the amending powers of the Parliament.

D. G. Palekar, *J.*, was of the view that an amendment of the Constitution abridging and taking away a fundamental right conferred by part III of the Constitution is not void and there were no implied or inherent limitations on the Amending power under the unamended Article 368 in its operation over the fundamental rights. There can be none after its amendment. He observed as:

¹⁴⁸*Id.*, at 1171.

What the Constitution conferred was made revocable, if necessary, by the amendatory process. In my view, therefore, Article 13(2) does not control the amendment of the Constitution. On that conclusion, it must follow that the majority decision in *Golak Nath*'s case is not correct. . . . No reference was made to any other provision in the Constitution as expressly imposing a limitation on the Amending Power.¹⁴⁹

H. R. Khanna, *J.* held that the limitation on the amending power only arose from the word 'amendment'. He also observed that there is no such inherent or implied limitation on the amending power. He rejected the contention that the fundamental rights and the Preamble of the Constitution could not be amended at all. He also observed:

Question has been posed during arguments as to whether the power to amend under the above article includes the power to completely abrogate the Constitution and replace it by an entirely new Constitution. The answer to the above question, in my opinion, should be in the negative. I am further of the opinion that amendment of the Constitution necessarily contemplates that the Constitution has not to be abrogated but only changes have to be made in it. . . . The word "amendment" postulates that the old Constitution survives without loss of its identity despite the change and continues even though it has been subjected to alterations.

As a result of the amendment, the old Constitution cannot be destroyed and done away with; it is retained though in the amended form. What then is meant by the retention of the old Constitution? It means the retention of the basic structure or framework of the old Constitution. A mere retention of some provisions of the old Constitution even though the basic structure or framework of the Constitution has been destroyed would not amount to the retention of the old Constitution. Although it is permissible under the power of amendment to effect changes, howsoever important, and to adapt the

¹⁴⁹*Id.*, at 1289-1290.

system to the requirements of the changing conditions, it is not permissible to touch the foundation or to alter the basic institutional pattern. The words "amendment of the Constitution" with all their wide sweep and amplitude cannot have the effect of destroying or abrogating the basic structure or framework of the Constitution."¹⁵⁰

(Emphasis added)

The only limitation is that the Constitution cannot be repealed or abrogated in the exercise of the power of amendment without substituting a mechanism by which the State is constituted and organized. That limitation flows from the language of the article itself.¹⁵¹

H. Hameedullah Beg, *J.* was of the view that there is no such limitation on the amending power of the parliament and went on saying that in such a Constitution as ours, we must strongly lean against a construction which may enable us to hold that any part of the Constitution is exempt from the scope of Article 368 as originally framed. Without express words in Article 368 itself to that effect, I am not prepared to merely presume or infer the presence of any *casus omissus* here.¹⁵²

S. N. Dwivedi, *J.* concurred with the conclusion of A. N. Ray, *J.* and observed:

The phrase "amendment of this Constitution" is the nerve-centre of Article 368. It is determinative of the dominion as well as the magnitude of the amending power. The words "this Constitution" in the phrase embrace the entire Constitution, as according to Article 393 "this Constitution" is called "the Constitution of India". . .

¹⁵⁰*Id.*, at 1437.

¹⁵¹*Id.*, at 1798.

¹⁵²*Id.*, at 1839.

Accordingly, each and every provision of the Constitution including Part III falls within the way of the amending power.¹⁵³

Article 368 is shaped by the philosophy that every generation should be free to adapt the Constitution to the social, economic and political conditions of its time. . . The denial of power to make radical changes in the Constitution to the future generation would invite the danger of extra Constitutional changes of the Constitution.¹⁵⁴

[O]bject and history of the amending power and the context of Article 368 leave little room for doubt that the word “amendment” includes the power of repealing or abrogating each and every provision of the Constitution. It may be that Parliament may not be able to annihilate the entire Constitution by one stroke of pen. But it can surely repeal or abrogate all provisions in Part III. Article 368 permits Parliament to apply not only the physician’s needle but also the surgeon’s saw. It may amputate any part of the Constitution if and when it becomes necessary so to do for the good health and survival of the other parts of the Constitution.¹⁵⁵

(Emphasis added)

Y. V. Chandrachud, *J.* expressed that he wanted to avoid writing a separate judgment but he was not left with the option to share the views of his esteemed brothers. He observed:

[T]he word ‘amendment’ in Article 368 has a clear and definite import and it connotes a power of the widest amplitude to make additions, alterations or variations... No express restraint having been imposed on the power to amend the amending power; it is unnecessary to seek

¹⁵³*Id.*, at 1892.

¹⁵⁴*Id.*, at 1903. He cited portion from Burke, ‘*Recollections on the Revolution in France and Other Writings*’ 23 (Oxford: Oxford University Press, 1958); The State without the means of some change is without means of its conservation. Without such means it might even risk the loss of that part of the Constitution which it wished the most religiously to preserve.

¹⁵⁵*Id.*, at 1912.

better evidence of the width of the power of amendment under our Constitution.¹⁵⁶

Article 368, manifestly, does not impose any express limitations....The power of amendment is a safety valve and having regard to its true nature and purpose, it must be construed as being equal to the need for amendment. The power must rise to the occasion.¹⁵⁷

Despite the fact that the formal conditions for amendment of the Constitution as laid down in Article 368 had in fact been fulfilled, the Court held that the amendments that violate the basic structure of the Constitution are unconstitutional.¹⁵⁸ It appears that doctrine was inspired by an exceptional display of courage and craft¹⁵⁹ but the basic things related to the doctrine remained unclear and unanswered. The majority judges declared some basic features without defining what basic feature and basic structure doctrine meant. The separate opinion of H. R. Khanna, *J.* is believed to have tipped the scale in favour of the majority opinion and was lifted by Sikri, *C.J.* To this judgment, T. R. Andhyarujina writes that the view of the majority cannot be the ratio of the *Keshavananda Case*.¹⁶⁰

¹⁵⁶*Id.*, at 2071.

¹⁵⁷*Id.*, at 2072.

¹⁵⁸See generally, Aharon Barak, 'Unconstitutional Constitutional Amendments', *Israel Law Review*, 326 [Vol. 44: 321]; H. M. SEERVAI, 'CONSTITUTIONAL LAW OF INDIA', 3113-3114 (Universal Law Publishing Company Pvt. Ltd., New Delhi, 2001).

¹⁵⁹See generally, UPENDRA BAXI 'COURAGE, CRAFT AND CONTENTION: THE INDIAN SUPREME COURT IN THE EIGHTIES' (BOMBAY: N. M. TRIPATHI PVT. LTD., 1985).

¹⁶⁰T. R. ANDHYARUJINA, 'THE KESHAVANANDA BAHARTI CASE: THE UNTOLD STORY OF STRUGGLE FOR SUPREMACY BY SUPREME COURT AND PARLIAMENT', 56 (New Delhi: Universal Law Publishing Co. Pvt. Ltd., 2011). He wrote, "If a ratio had to be extracted from the eleven judgments in the Keshavananda case it could not have been done in the manner of asking judges to merely subscribe to "The View of Majority" paper on the day of pronouncement of the judgments in Court. Deriving a ratio from the 11 judgments could have been done only after a full hearing by a later Constitution Bench to which the Petitions were remanded for disposal according to the unanimous Order of the Court. No later

AFTERMATH OF KESHAVANANDA

R. COELHO¹⁶¹

One of the reasons of tussle between the Judiciary and parliament has always been the Ninth Schedule.¹⁶² The fundamental question¹⁶³ before

Constitution Bench to dispose of the petitions was convened to dispose-off the petitions. Alternatively, the ratio could have been extracted by any later bench from the differing judgments as had been done in other cases.” He further remarks, “Look whatever way, there was no majority view, no decision and no ratio in *Keshavananda case* that Parliament could not amend the basic structure or framework of the Constitution. This was only the conclusion of Justice Khanna. By a strategic roping in of his view in with six other judges “The View of the Majority” a majority of 7 Judges to 6 was created and approved by nine judges.”; Two years after *Keshavananda*, in *Indira Gandhi v. Raj Narain*, (1975) Suppl. SCC 1, Ray, C.J. observed, “It should be stated here that the hearing has proceeded on the assumption that it is not necessary to challenge the majority view in *Keshavananda Bharati case*.”

¹⁶¹I. R. Coelho v. State of Tamil Nadu, AIR 2007 SC 861. This was a Constitution Bench judgment of the Supreme Court of India delivered on 11 January 2007. The bench was consisted of Y. K. Sabharwal, C.J., Ashok Bhan, Dr. Arijit Pasayat, B.P. Singh, S.H. Kapadia, C.K. Thakker, P.K. Balasubramanyan, Altamas Kabir and D.K. Jain, JJ.

¹⁶²This probably owes its roots from the Constitution (First Amendment) in *Shankari Prasad v. Union of India*, AIR 1951 SC 458, *Dhirubha Devisingh Gohil v. State of Bombay*, AIR 1955 SC 47, *Sajjan Singh v. State of Rajasthan*, [1965] 1 SCR 933, *Golak Nath and Ors. v. State of Punjab* AIR 1967 SC 1643, *Indira Nehru Gandhi v. Raj Narain*, AIR 1975 SC 2299, and *Waman Rao v. Union of India*, AIR 1981 SC 271 cases.

¹⁶³The case arose out of an order of reference made by a five-judge constitution bench in 1999. The Gudalur Janmam Estates (Abolition and Conversion into Ryotwari) Act, 1969, that vested forest lands in the Janmam estates in the State of Tamil Nadu, was struck down by the Supreme Court in *Balmadies Plantations Ltd. & Anr. v. State of Tamil Nadu*, (1972) 2 SCC 133, as it was found to be outside the scope of protection provided to agrarian reforms under article 31-A of the Constitution. By the Constitution (Thirty-fourth Amendment) Act, the Janmam Act was inserted in the ninth schedule, which was challenged. In its referral order, the constitution bench noted that, according to *Waman Rao v. Union of India*, (1981) 2 SCC 362, amendments to the Constitution made on or after 24 April 1973 (the date of the *Keshavananda Bharati* judgment) inserting various laws in the ninth schedule were open to challenge on the ground that such amendments are beyond the constituent power of Parliament since they damage the basic structure of the Constitution. The referral order further stated that the judgment in *Waman Rao* needs to be reconsidered by a larger bench so that it is made clear “whether an Act or regulation which, or a part of which, is or has been found by the courts to be

the Court in this case was whether on and after 24 April 1973 when basic structures doctrine was announced, is it permissible for the Parliament under Article 31B to immunize legislations from fundamental rights by inserting them into the Ninth Schedule?¹⁶⁴ If so, what is its effect on the power of judicial review of the Court?

The Court first considered the development of law from the factual background of the framing of the Constitution to referring the *Kameshwar v. State of Bihar*,¹⁶⁵ *Sankari Prasad Singh Deo v. Union of India*,¹⁶⁶ *I. C. Golak Nath v. State of Punjab*,¹⁶⁷ *Keshavananda Bharati v. State of Kerala*,¹⁶⁸ *Indira Nehru Gandhi v. Raj Narain*,¹⁶⁹ *A. K. Gopalan v. State of Madras*¹⁷⁰ and *Maneka Gandhi v. Union of India*¹⁷¹ cases etc.

As to the real crux of the problem— the extent and nature of immunity that Article 31B can validly provide, the Court referred to

violative of one or more of the fundamental rights conferred by articles 14, 19 or 31 can be included in the ninth schedule or whether it is only a constitutional amendment amending the ninth schedule which damages or destroys the basic structure of the Constitution that can be struck down”.

¹⁶⁴One of the members of the Constituent Assembly, Professor K. T. Shah opposed the creation of Ninth Schedule in order to uphold the sanctity of the Supreme Court. This concept of Ninth Schedule came from Ireland, where land had been unevenly distributed. The judicial attitude as there was no unanimity on the point between the Courts, led to the creation of this Schedule. The Ninth Schedule worked as shield as it given no scope to the judicial intervention.

¹⁶⁵AIR 1951 Patna 91.

¹⁶⁶[1952] 1 SCR 89.

¹⁶⁷[1967] 2 SCR 762.

¹⁶⁸AIR 1973 SC 1461.

¹⁶⁹[1978] 2 SCR 405; Where the High Court of Allahabad set aside the election of the then Prime Minister Mrs. Indira Gandhi to the fifth Lok Sabha on the ground of alleged corrupt practices. Pending appeal against the High Court judgment before the Supreme Court, the Constitution (Thirty-ninth Amendment) Act, 1975 was passed. Clause (4) of the amendment inserted Article 329A after Article 329 and Clause (5) of the Amendment Act inserted after Entry 86, Entries 87 to 124 in the Ninth Schedule. Many of the Entries inserted were unconnected with land reforms. These clauses were struck down being violative of basic structure of the Constitution in *Indira Nehru Gandhi*.

¹⁷⁰AIR 1950 SC 27.

¹⁷¹[1978] 2 SCR 621.

opinion of Khanna, *J.* in *Keshavananda* (to the extent of Twenty-ninth amendment) and observed:

[T]hat some of the fundamental rights are a part of the basic structure, any amendment having an impact on fundamental rights would necessarily have to be examined in that light.¹⁷² . . . Violation in individual case has to be examined to find out whether violation of equality amounts to destruction of the basic structure of the Constitution.¹⁷³

The Court while deciding the correctness of the rival contentions held that the first aspect to be borne in mind is that each exercise of the amending power inserting laws into Ninth Schedule entails a complete removal of the fundamental rights chapter vis-a-vis the laws that are added in the Ninth Schedule. Secondly, insertion in Ninth Schedule is not controlled by any defined criteria or standards by which the exercise of power may be evaluated. The consequence of insertion is that it nullifies entire Part III of the Constitution. There is no constitutional control on such nullification. It means an unlimited power to totally nullify Part III in so far as Ninth Schedule legislations are concerned. The supremacy of the Constitution mandates all constitutional bodies to comply with the provisions of the Constitution. It also mandates a mechanism for testing the validity of legislative acts through an independent organ, viz. the judiciary.¹⁷⁴ Y. K. Sabharwal, *C.J.* was of the observation that if the doctrine of basic structure provides a touchstone to test the amending power or its exercise, there can be no doubt and it has to be so accepted that Part III of the Constitution has a key role to play in the application of the said doctrine. Regarding the status and stature in respect of fundamental rights in Constitutional scheme, it is to be remembered that Fundamental Rights are those rights of citizens or those negative obligations of the State which do not permit encroachment on individual liberties. The State is to deny no one equality before the

¹⁷²*Supra* note 162 at 48.

¹⁷³*Id.*, at 50.

¹⁷⁴*Id.*, at 53.

law. The object of the Fundamental Rights is to foster the social revolution by creating a society egalitarian to the extent that all citizens are to be equally free from coercion or restriction by the State. By enacting Fundamental Rights and Directive Principles which are negative and positive obligations of the States, the Constituent Assembly made it the responsibility of the Government to adopt a middle path between individual liberty and public good. Fundamental Rights and Directive Principles have to be balanced. That balance can be tilted in favour of the public good. The balance, however, cannot be overturned by completely overriding individual liberty. This balance is an essential feature of the Constitution.¹⁷⁵ Fundamental rights enshrined in Part III were added to the Constitution as a check on the State power, particularly the legislative power. Through Article 13, it is provided that the State cannot make any laws that are contrary to Part III. The framers of the Constitution have built a wall around certain parts of fundamental rights, which have to remain forever, limiting ability of majority to intrude upon them. That wall is the 'Basic Structure' doctrine. Under Article 32, which is also part of Part III, Supreme Court has been vested with the power to ensure compliance of Part III. The responsibility to judge the constitutionality of all laws is that of judiciary. Thus, when power under Article 31-B is exercised, the legislations made completely immune from Part III results in a direct way out, of the check of Part III, including that of Article 32. It cannot be said that the same Constitution that provides for a check on legislative power, will decide whether such a check is necessary or not. It would be a negation of the Constitution.¹⁷⁶ If Article 31B only provided restricted immunity and it seems that original intent was only to protect a limited number of laws, it would have been only exception to Part III and the basis for the initial upholding of the provision. However, the unchecked and rampant exercise of this power, the number having gone from 13 to 284, shows that it is no longer a mere exception. The absence of guidelines for

¹⁷⁵*Id.*, at 54.

¹⁷⁶*Id.*, at 55.

exercise of such power means the absence of constitutional control which results in destruction of constitutional supremacy and creation of parliamentary hegemony and absence of full power of judicial review to determine the constitutional validity of such exercise.¹⁷⁷

Court was of firm opinion that the Parliament has power to amend the provisions of Part III but that power is subject to the limitation of basic structure doctrine.¹⁷⁸In respect to the constituent power, the Court held as under:

If constituent power under Article 368, the other name of amending power cannot be made unlimited, it follows that Article 31B cannot be used so as to confer unlimited power. Article 31B cannot go beyond the limited amending power contained in Article 368. The power to amend Ninth Schedule flows from Article 368. This power of amendment has to be compatible with limits on the power of the amendment. The limit came with the *Keshavananda Bharati case*. Therefore, Article 31B after April 24, 1973, despite its wide language, cannot confer unregulated or unlimited immunity.¹⁷⁹

(Emphasis added)

As to the extent of judicial review in the context of amendments to the Ninth Schedule, the Court observed that the fact of validation of laws based on exercise of blanket immunity eliminates Part III in entirety hence, the 'rights test' as part of the basic structure doctrine has to

¹⁷⁷*Id.*, at 56.

¹⁷⁸Whether the impact of such amendment results in violation of basic structure has to be examined with reference to each individual case. Take the example of freedom of Press which, though not separately and specifically guaranteed, has been read as part of Article 19(1)(a). If Article 19(1)(a) is sought to be amended so as to abrogate such right (which we hope will never be done), the acceptance of respondent's contention would mean that such amendment would fall outside the judicial scrutiny when the law curtailing these rights is placed in the Ninth Schedule as a result of immunity granted by Article 31B. The impact of such an amendment shall have to be tested on the touchstone of rights and freedoms guaranteed by Part III of the Constitution; See, para 58 of the judgment; *Id.*, at 77.

¹⁷⁹*Supra* note 162 at 68.

apply.¹⁸⁰ It was further held by the Court that if the triangle of Article 21 read with Article 14 and Article 19 is sought to be eliminated, not only the '*essence of right test*' but also the '*rights test*' has to apply, as these tests form the part of the application of the doctrine of basic structure.¹⁸¹

PRAMATI EDUCATIONAL AND CULTURAL TRUST¹⁸²

The Constitution Bench in this case was called upon to rule on the validity of Articles 15(5)¹⁸³ and 21A¹⁸⁴ of the Constitution. Two substantial questions of law before the Court for consideration were: whether by inserting Clause (5) in Article 15 of the Constitution by the Constitution (Ninety-third Amendment) Act, 2005,¹⁸⁵ Parliament has

¹⁸⁰*Id.*, at 64. Soli Sorabjee, the former Attorney General of India in a lecture in the Oslo University in October 2008, pointed out that "*The judgment clearly imposes further limitations on the constituent power of Parliament with respect to the principles underlying certain fundamental rights. With the utmost respect the judgment is not conducive to clarity. It has introduced nebulous concepts like the essence of the rights test. Besides apart from the express terms of Articles 21, 14 and 19, what are the principles underlying there under? One does not have to be a prophet to visualize further litigation to explain the Coelho judgment which is sure to add to the prevailing confusion.*" Thus, there is no certainty or unanimity about what constitutes the essential or basic features of the Constitution.

¹⁸¹*Supra* note 162 at 71.

¹⁸²Pramati Educational and Cultural Trust (Registered) and Others v. Union of India and Others (2014) 8 SCC 1. This was a Constitution Bench judgment of the Supreme Court of India delivered on 6 May 2014. The bench was consisted of R. M. Lodha, C.J., A. K. Patnaik, S. J. Mukhopadhaya, Dipak Misra and F. M. Ibrahim Kalifulla, JJ.

¹⁸³Clause (5) of Article 25 reads as: Nothing in this article or in sub-clause (g) of clause (1) of article 19 shall prevent the State from making any special provision, by law, for the advancement of any socially and educationally backward classes of citizens or for the Scheduled Castes or the Scheduled Tribes in so far as such special provisions relate to their admission to educational institutions including private educational institutions, whether aided or unaided by the State, or other than the minority educational institutions referred to in clause (1) of Article 30.

¹⁸⁴Article 21A reads as: *Right to education*—The State shall provide free and compulsory education to all children of the age of six to fourteen years in such manner as the State may, by law, determine.

¹⁸⁵To read the Statement of Objects and Reasons of the Constitution (Ninety-third Amendment) Bill, 2005 and text of the Constitution (Ninety-third Amendment) Act, 2005, *See*, accessed 12 January 2020. <<http://legislative.gov.in/constitution-ninety-third-amendment-act-2005>>

altered the basic structure or framework of the Constitution?; and whether by inserting Article 21A of the Constitution by the Constitution (Eighty-sixth Amendment) Act, 2002,¹⁸⁶ Parliament has altered the basic structure or framework of the Constitution?

With regard to the question that clause (5) of Article 15 of the Constitution is violative of Article 14 of the Constitution inasmuch as it treats unequals as equals,¹⁸⁷ and has destroyed the right under Article 19(1)(g), and Article 30 of the Constitution, the Court observed:

As and when a law is made by the State under Clause (5) of Article 15 of the Constitution, such a law would have to be examined whether it has taken into account the fact that private unaided educational institutions are not aided by the State and has made provisions in the law to ensure that *private unaided educational institutions are compensated for the admissions made in such private unaided educational institutions from amongst socially and educationally backward classes of citizens or the Scheduled Castes and the Scheduled Tribes*. . . [A] law made under Clause (5) of Article 15 of the Constitution by the State on the ground that it treats private aided educational institutions and private unaided educational institutions alike is not immune from a challenge under Article 14 of the Constitution. Clause (5) of Article 15 of the Constitution only states that nothing in Article 15 or Article 19(1)(g) will prevent the State to make a special provision, by law, for admission of socially and educationally backward classes of

¹⁸⁶To read the Statement of Objects and Reasons of the Constitution (Eighty-sixth Amendment) Bill, 2002 and text of the Constitution (Eighty-sixth Amendment) Act, 2002, *See*, accessed 12 January 2020 <<http://legislative.gov.in/constitution-eighty-sixth-amendment-act-2002>>

¹⁸⁷ Mr. Nariman argued that clause (5) of Article 15 of the Constitution fails to make a distinction between aided and unaided educational institutions and treats both aided and unaided alike in the matter of making special provisions for advancement of socially and educationally backward classes of citizens or for the Scheduled Castes and the Scheduled Tribes insofar as such special provisions relate to their admission to such educational institutions.

citizens or for the Scheduled Castes and the Scheduled Tribes to educational institutions including private educational institutions, whether aided or unaided by the State. Clause (5) of Article 15 of the Constitution does not say that such a law will not comply with the other requirements of equality as provided in Article 14 of the Constitution. Hence, we do not find any merit . . . that Clause (5) of Article 15 of the Constitution that insofar as it treats unaided private educational institutions and aided private educational institutions alike it is violative of Article 14 of the Constitution.¹⁸⁸

(Emphasis added)

As to the exclusion of minority education institutions from the purview of Article 15(5), the Court observed:

[T]he minority character of the minority educational institutions referred to in Clause (1) of Article 30 of the Constitution, whether aided or unaided, may be affected by admissions of socially and educationally backward classes of citizens or the Scheduled Castes and the Scheduled Tribes and it is for this reason that minority institutions, aided or unaided, are kept outside the enabling power of the State under Clause (5) of Article 15 with a view to protect the minority institutions from a law made by the majority.¹⁸⁹

Referring to *M. Ismail Faruqui v. Union of India*¹⁹⁰ and *T.M.A. Pai Foundation*,¹⁹¹ the Court held that by excluding the minority institutions referred to in Clause (1) of Article 30 of the Constitution, the secular character of India is maintained and not destroyed and further observed that the Preamble of the Constitution read in particular with Articles 15 to 28 emphasis this aspect and indicates

¹⁸⁸*Supra* note 183 at 24.

¹⁸⁹*Id.*, at 26. The Court referred to *Ashoka Kumar Thakur v. Union of India* observed that the minority educational institutions, by themselves, are a separate class and their rights are protected under Article 30 of the Constitution, and, therefore, the exclusion of minority educational institutions from Article 15(5) is not violative of Article 14 of the Constitution.

¹⁹⁰(1994) 6 SCC 360.

¹⁹¹*T.M.A. Pai Foundation. State of Karnataka*, (2002) 8 SCC 481.

that the concept of secularism embodied in the constitutional scheme is a creed adopted by the Indian people. Hence, secularism is no doubt a basic feature of the Constitution. The essence of secularism in India is the recognition and preservation of the different types of people, with diverse languages and different beliefs and Articles 29 and 30 seek to preserve such differences and at the same time unite the people of India to form one strong nation.¹⁹²

The Court further observed that the view of Bhandari, *J.* in *Ashoka Kumar Thakur v. Union of India*¹⁹³ that the imposition of reservation on unaided institutions by the Ninety-third Amendment has abrogated Article 19(1)(g), a basic feature of the Constitution is not correct; and held that none of the rights Under Articles 14, 19(1)(g) and 21 of the Constitution have been abrogated by Clause (5) of Article 15 of the Constitution and the (Ninety-third Amendment) Act, 2005 of the Constitution inserting Clause (5) of Article 15 of the Constitution is valid.¹⁹⁴

As to the validity of Article 21A, the Court observed:

We do not find anything in Article 21A which conflicts with either the right of private unaided schools Under Article 19(1)(g) or the right of minority schools under Article 30(1) of the Constitution, but the law made under Article 21A may affect these rights under Articles 19(1)(g) and 30(1). The law made by the State to provide free and compulsory education to the children of the age of 6 to 14 years should not, therefore, be such as to abrogate the right of unaided private educational schools Under Article 19(1) (g) of the Constitution or the right of the minority schools, aided or unaided, Under Article 30(1) of the Constitution.¹⁹⁵

¹⁹²*Supra* note 183 at 27.

¹⁹³(2008) 6 SCC 1.

¹⁹⁴*Supra* note 183 at 29.

¹⁹⁵*Id.*, at 40.

This additional power vested by the Constitution (Eighty-Sixth Amendment) Act, 2002 in the State is independent and different from the power of the State under Clause (6) of Article 19 of the Constitution and has affected the voluntariness of the right Under Article 19(1) (g) of the Constitution. By exercising this additional power, the State can by law impose admissions on private unaided schools and so long as the law made by the State in exercise of this power under Article 21A of the Constitution is for the purpose of providing free and compulsory education to the children of the age of 6 to 14 years and so long as such law forces admission of children of poorer, weaker and backward sections of the society to a small percentage of the seats in private educational institutions to achieve the constitutional goals of equality of opportunity and social justice set out in the Preamble of the Constitution, such a law would not be destructive of the right of the private unaided educational institutions under Article 19(1)(g) of the Constitution.¹⁹⁶

Religious and linguistic minorities, therefore, have a special constitutional right to establish and administer educational schools of their choice and this Court has repeatedly held that the State has no power to interfere with the administration of minority institutions and can make only regulatory measures and has no power to force admission of students from amongst non-minority communities, particularly in minority schools, so as to affect the minority character of the institutions.¹⁹⁷

The Court in *Pramati* held the Constitution (Ninety-third Amendment) Act, 2005 inserting Clause (5) of Article 15 of the Constitution and the Constitution (Eighty-sixth Amendment) Act, 2002 inserting Article 21A of the Constitution do not alter the basic structure or framework of the Constitution and are constitutionally valid. The Court further held that the Right of Children to Free and Compulsory

¹⁹⁶*Id.*, at 42.

¹⁹⁷*Id.*, at 45.

Education Act, 2009¹⁹⁸ (*hereinafter*, Act of 2009) is not *ultra vires* Article 19(1)(g) of the Constitution; and held that the Act of 2009 insofar as it applies to minority schools, aided or unaided, covered under Clause (1) of Article 30 of the Constitution is *ultra vires* the Constitution.¹⁹⁹ One unanswered question in *Ashoka Kumar Thakur v. Union of India*,²⁰⁰ whether clause (5) of Article 15 was constitutionally valid or not so far as “private unaided” educational institutions are concerned was answered in this case. The judgment exempted the minority educational institutions, aided or unaided in its entirety from the purview of Act of 2009. But the issue, whether the balance between Part III and Part IV of the Constitution has been destroyed by Article 15(5) as raised in this case was not touched upon by the judges and left unanswered.

NJAC²⁰¹

The Constitution (Ninety-ninth Amendment) Act, 2014²⁰² proposed to establish a National Judicial Appointments Commission (*hereinafter*, NJAC) as a constitutional body to replace the existing system of judicial appointments (collegium system), whereby the three senior-most judges of the Supreme Court decide upon the appointments to the Supreme Court, with a nominally consultative role of the executives. Through the amendment, a new Article 124A was inserted

¹⁹⁸Act No. 35 of 2009.

¹⁹⁹*Supra* note 183 at 47.

²⁰⁰(2008) 6 SCC 1. Insofar as Article 15(5) enables the State to make special provisions relating to admission to educational institutions of the State and educational institutions aided by the State was considered in *Ashoka Kumar Thakur v. Union of India*, (2008) 6 SCC 1.

²⁰¹*Supreme Court Advocates-on-Record-Association and Ors. v. Union of India*, *See*, <<http://judis.nic.in>>. This was a Constitution Bench judgment of the Supreme Court of India delivered on 16 October 2015. The bench consisted of J. S. Khehar, JastiChelameswar, Madan B. Lokur, Kurian Joseph and A. K. Goel, *JJ*.

²⁰²To read the Statement of Objects and Reasons of the Constitution (One Hundred and Twenty-first Amendment) Bill, 2014, *See*, accessed 12 February 2020 <<http://legislative.gov.in/sites/default/files/99%20SOR.pdf>>; and to read the text of the Constitution (Ninety-ninth Amendment) Act, 2014, *See*, accessed 12 February 2020 <<http://legislative.gov.in/sites/default/files/99th.pdf>>.

in Part V, Chapter IV of the Constitution of India to bring into existence a National Judicial Appointments Commission, comprising of six members *i.e.*, the Chief Justice of India and two senior-most judges of the Supreme Court, two eminent persons (who would be nominated by a committee consisting of the CJI, Prime Minister of India and Leader of Opposition or leader of single largest party) and the Union Minister of Law and Justice Law. Two more Articles were inserted, namely, Articles 124B and 124C to recommend appointments to the higher judiciary. In furtherance to the amendment, the National Judicial Appointments Commission Act, 2014²⁰³ (*hereinafter*, NJAC Act) was enacted.

This constitutional amendment was challenged in the Supreme Court. The questions²⁰⁴ before the Court for consideration were: *firstly*, whether the Constitution (Ninety-ninth Amendment) Act, 2014 which substitutes and replaces the extant procedure for the appointment of judges of the Supreme Court and the High Courts with a radically different procedure impinges on the independence of the judiciary and violates the basic structure of the Constitution; *Secondly*, whether the National Judicial Appointments Commission Act, 2014 is a constitutionally valid legislation.

Reiterating independence of judiciary as a basic feature and referring to the *Keshvanand case*, the Court made the following observations as to the amending power of Parliament:

²⁰³Act No. 40 of 2014. To read the text of NJAC Act, *See*, accessed 12 February 2020 <<http://legislative.gov.in/sites/default/files/A2014-40.pdf>>.

²⁰⁴The contention of the petitioners was that the primacy of judiciary in appointment of judges and absence of interference by the executive therein is by itself a part of basic feature of the Constitution. Whereas, the respondents contended that primacy of judiciary in appointment of judges is not part of independence of judiciary and even when appointments are made by Executive, independence of judiciary is not affected. Alternatively, in the amended scheme, primacy of judiciary is retained and independence of judiciary is strengthened. The amendment promotes transparency and accountability and is a part of needed reform without affecting the basic structure of the Constitution.

As far the Constitution (*One Hundred and Twenty-first Amendment*) Bill, 2014 is concerned, there is no doubt or dispute that the procedure mentioned above was followed and that it received the assent of the President on 31st December, 2014. To that extent the Constitution (Ninety-ninth) Amendment Act, 2014 is a procedurally valid legislation.²⁰⁵

It is true that the Constitution cannot specify and incorporate each and every detail, particularly procedural details. But the same time, the substantive requirements of the NJAC scheme must be apparent from the Constitution (Ninety-ninth) Amendment Act read with the NJAC Act, particularly when it seeks to overthrow an existing method of appointment of judges that maintains the independence of the judiciary. Vital issues cannot be left to be sorted out at a later date through supplementary legislation or supplementary subordinate legislation, otherwise an unwholesome hiatus would be created, making matters worse. . .²⁰⁶ The package deal must survive as whole or fall as a whole – there cannot be piecemeal existence.²⁰⁷

To one of the contentions that even if amendment is held to be void, the pre-existing system cannot be restored, Adarsh Kumar Goel, *J.* observed that it has no logic; and in exercise of power of judicial review, a provision can be declared void in which case the legal position as it stands without such void provision can be held to prevail. It is not a situation when position has not been made clear while deciding an issue. Power of this Court to declare the effect of its order cannot be doubted nor the decisions relied upon by the respondents show otherwise. He held that on amendment being struck down, the pre-existing system stands revived.²⁰⁸ The Court by a majority of 4:1 held that the Constitution (Ninety-ninth Amendment) Act, 2014 and the related laws damages the basic structure of the

²⁰⁵*Supra* note 202 at 792, para 373.

²⁰⁶*Id.*, at 842-843, para 481.

²⁰⁷*Id.*, at 842, para 482.

²⁰⁸*Id.*, at 1024, para 24.

Constitution and the pre-existing scheme of appointment of judges stands revived. The Court also held that even if the doctrine of basic structure is not applied in judging the validity of a parliamentary statute, independence of judiciary and rule of law are parts of Articles 14, 19 and 21 of the Constitution and absence of independence of judiciary affects the said Fundamental Rights. The NJAC Act was accordingly struck down by the Court.²⁰⁹

Chelameswar, *J.* dissented and citing the Canada Supreme Court's judgment in *Valente v. Queen*,²¹⁰ made the following observations:

[J]udicial independence connotes not merely a state of mind or attitude in the actual exercise of judicial functions, but a status or relationship to others, particularly to the executive branch of government, that rests on objective conditions or guarantees. It is generally agreed that judicial independence involves both individual and institutional relationships: the individual independence of a judge, as reflected in such matters as security of tenure, and the institutional independence of the court or tribunal over which he or she presides, as reflected in its institutional or administrative relationships to the executive and legislative branches of Government.²¹¹

Though the Supreme Court is the final arbiter of the Constitution and the laws but there is no limitation or restriction as to the overruling power of the Court which is very clear from a plain reading of the text of Article 141. As discussed in *Pramati Educational and Cultural Trust*,²¹² the Court found the observation of Bhandari, *J.* in *Ashoka Kumar Thakur*²¹³ incorrect where he observed that the imposition of reservation on unaided institutions by the Ninety-third Amendment has abrogated Article 19(1)(g), a basic feature of the Constitution. This raises a question that, can the Supreme Court overrule

²⁰⁹*Supra* note 202 at 1024, para 23.

²¹⁰[1985] 2 SCR 673.

²¹¹*Supra* note 202 at 485-486.

²¹²*Supra* note 183.

²¹³*Supra* note 194.

Keshavananda in future by constituting a larger bench of fifteen judges, if it feels that an error was committed by their learned brother judges on 24 April 1973? *Keshavananda* was not an *en banc* judgment²¹⁴ and even if it would have been, it would not have affected the nature of the abovementioned question because the Parliament has the power to make laws with regard to the strength of the judges of the Supreme Court.²¹⁵ Article 141 clearly provides that “law declared by the Supreme Court *shall be binding on ‘all other courts’ within the territory of India*” (*emphasis laid*). The Court has the power to overrule its judgments and the judgment of a larger bench shall prevail over the smaller bench.

CONCLUSION

From the analysis of judgments in Parts II and III, the answer of the first question is in negative. The amending power of Parliament is not absolute and is subject to implied limitations and basic structure doctrine. Parliament in exercise of its power of amendment can only amend to the extent that it does not affect or destroy the basic features of the basic structure of the Constitution. The answer of the second question is also in negative. There is no clarity as to the basic constituents of the basic structure of the Constitution. The doctrine lacks judicial definition and till date, Supreme Court has not given any exhaustive list of basic constituents of the basic structure. In *Keshavananda*, *Shelat and Grover*, *JJ.*²¹⁶ without explaining what a

²¹⁴*Supra* note 91.

²¹⁵The Supreme Court (Number of Judges) Amendment Act, 2019 [No. 37 of 2019] was passed to increase the number of judges from thirty-one (including the Chief Justice) to thirty-four. The Supreme Court (Number of Judges) Amendment Bill, 2019 was in Lok Sabha on 5 August 2019 and was passed on the same day in the House; and was passed by Rajya Sabha on 7 August 2019. Parliament has increased the number of judges from the original eight in 1950 to eleven in 1956, fourteen in 1960, eighteen in 1978, twenty-six in 1986 and thirty-one in 2009.

²¹⁶*Supra* note 145. Also, in *Indira Nehru Gandhi v. Raj Narain*, AIR 1975 SC 2299, Mathew, J. perceptively stated that “the concept of basic structure as a brooding omnipresence in the sky apart from specific provisions of the constitution is too vague and indefinite to provide a yardstick for the validity an ordinary law.”

basic feature or basic structure means, simply observed “[B]asic structure of the Constitution is not a vague concept and the apprehensions expressed on behalf of the respondents that neither the citizen nor the Parliament would be able to understand it are unfounded...basic features cannot be catalogued but can only be illustrated.” And, the third and last question, whether the basic constituents of the basic structure are static or dynamic? It is clear from the approach of the Court that the nature of basic constituents are dynamic and not static.²¹⁷ Despite there being a lack of clarity as to the

²¹⁷The Court has declared basic features on case to case basis. The basic features of the Constitution as declared by the Court are as follows— Judicial Review: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; L.Chandrakumar v. Union of India, AIR 1997 SC 1125; Waman Rao v. Union of India, (1981) 2 SCC 362; S. P. Sampath Kumar v. Union of India, (1987) 1 SCC 124 and P. Sambamurthy v. State of Andhra Pradesh, (1987) SCC 362; I. R. Coelho v. State of Tamil Nadu, AIR 2007 SC 861 [It was also held impliedly as basic feature in the I. C. Golakh Nath and Ors. v. State of Punjab, [1967] 2 SCR 762 by Mudholkar, J. though the Court not answered clearly and ended propounding the doctrine of prospective overruling]. Rule of Law: Indira Nehru Gandhi v. Raj Narain, AIR 1975 SC 2299. Effective access to Justice: Central Coal Fields Ltd. v. Jaiswal Coal Co., 1980 Supp SCC 471. Parts III and IV: Minerva Mills v. Union of India, AIR 1980 SC 1789. Democracy: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; KihotoHollohan v. Zachillhu, AIR 1993 SC 412; S. R. Bommai v. Union of India, AIR 1994 SC 1918. Separation of Powers between the Legislature, Executive and Judiciary: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; State of Bihar v. Bal Mukund Sah, AIR 2000 SC 1296; Kumar Padma Prasad v. Union of India, AIR 1992 SC 1213. Social and Economic Justice— to build a welfare state: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; Bhim Singhji v. Union of India, AIR 1981 SC 234. Independence of Judiciary: Supreme Court Advocates on Record Association v. Union of India, (1993) 4 SCC 441; Gupta S. P. v. Union of India, AIR 1982 SC 149, State of Bihar v. Bal Mukund Sah (2000) 4 SCC 640; Kumar Padma Prasad v. Union of India, AIR 1992 SC 1213; Supreme Court Advocates-on-Record-Association and Ors. v. Union of India, See, <<http://judis.nic.in>>, judgment dated 16 October 2015. Articles 32, 136, 141 and 142: Delhi Judicial Service Assn. v. State of Gujarat, (1991) 4 SCC 406. Preamble: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; State of U. P. v. Dina Nath Shukla, AIR 1997 SC 1095. Free, Fair and Periodic Election: KihotoHollohan v. Zachillhu, AIR 1993 SC 412. Secularism: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461; S. R. Bommai v. Union of India, AIR 1994 SC 1918; Valsamma Paul v. Cochin University, AIR 1996 SC 1011; Aruna Roy v. Union of India, AIR 2002 SC 3176. Doctrine of Equality (as the essence of democracy): M. Nagraj v. Union of India, (2006) 8 SCC 212. Republican form of Government: Keshavananda Bharati v. State of Kerala, AIR 1973 SC 1461. Federal Character of

basic constituents of the basic structure, it seems that the Court has gone to the extent of declaring limited amending power of the Parliament as one of the basic features of the basic structure of the Constitution.

The basic structure doctrine is a counter-majoritarian doctrine which is a sum total of the basic features of the Constitution. The doctrine is meant for special use in times when constitutional amendments threaten the basic framework of the Constitution. The genesis of pronouncement of this doctrine in India can be traced back to the unconstitutional-constitutional amendment which started from the date of adoption of the Constitution. Various instances are there where the Parliament transgressed its powers and also went to the extent to misuse the Ninth Schedule (*See, I. R. Coelho*, discussed in Part II). Therefore, this doctrine is a judicial response to keep the Parliament within the limits of the Constitution.

As to the test to decide if an amendment is against the basic structure of the Constitution, the Court in *M. Nagraj*²¹⁸ tried to formulate twin tests— the ‘width test’²¹⁹ and the ‘test of identity’.²²⁰ In *I. R. Coelho*,²²¹ the ‘rights test’ and the ‘essence of right test’ were held to

the Constitution: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Mandate to build a Welfare State as contained in the DPSP: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Maintenance of the Unity and Integrity of India: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Sovereignty of the Country: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Democratic Character of the Polity: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Essential Features of Individual Freedoms: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Social, Economic and Political Justice: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Liberty of thought, expression, belief, faith and worship: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461. Equality of status and opportunity: *Keshavananda Bharati v. State of Kerala*, AIR 1973 SC 1461.

²¹⁸*M. Nagraj v. Union of India*, (2006) 8 SCC 212.

²¹⁹ That there shall not be any obliteration of any of the Constitutional limitation.

²²⁰ That there should not be any alteration in the existing structure of the equality code.

²²¹Supra note at 162.

be a part of application of the doctrine. In this regard, 'impact test'²²² can also be used to determine whether any law destroys the basic structure or not. What is to be considered regarding the doctrine is that the Parliament cannot amend the basic features in such a manner so as to take away that feature either partially or in its entirety. What is to remain after such a constitutional amendment is clear from the text of Article 368 itself which reads as "...the Constitution shall '*stand amended*' in accordance to the bill"; and the basic features of the basic structure shall remain unaffected, which is the essence of the Constitution. In other words, the basic structure doctrine is a means to give a momentum to the living principles of the rule of law and to establish the supremacy of the Constitution; and to check that the basic features of the Constitution which forms its essence are not destroyed or abridged by the Parliament in exercise of its power of amendment.

To conclude, the constituent power of Parliament to amend the provisions of the Constitution must be exercised for the purposes of '*construction*' and not of destruction. The term amendment does not signify the repeal of the Constitution or destruction of the Constitution. If it would have been, the Constituent Assembly would have been specifically provided for the same, either in the provisions of the Article 368 or in its marginal head. Furthermore, the expression '*constituent power*' itself signifies that the power be exercised in order to '*constitute*' or '*form*' something. Therefore, considering the changing will and demands of the PEOPLE OF INDIA, the provisions of the Constitution should be amended in such a manner so that the basic features of the basic structure of the Constitution shall remain the same and the Constitution shall remain "'stand' amended" after such amendment.

²²²If the impact of such a law has an effect on any of the rights guaranteed under Part III of the Constitution, then by applying this test, the answer will be in affirmative that such law is in violation of the basic structure.